Chapter 8. Manitoba Climate Change Law and Policy*

I. Overview

8:1. Generally

This chapter examines Manitoba's climate change strategy and the development of legislation in Manitoba, one of the mechanisms for the implementation of that strategy.

Manitoba was quick to embrace the challenge of matching the percentage greenhouse gas ("GHG") reduction targets established for Canada under the Kyoto Protocol.[1] It received early recognition for its leadership in this regard.[2] *The Climate Change and Emissions Reductions Act*[3] ("*The 2008 Climate Change Act*") came into force in 2008 and solidified the province's commitment to achieving Canadian targets to reduce GHG emissions in line with Kyoto targets (6% below 1990 levels by 2012). The Act was later repealed by *The Climate and Green Plan Act* ("*The 2018 Climate and Green Plan Act*") which came into force on November

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John D. Stefaniuk is a Partner at Thompson Dorfman Sweatman LLP. Mary J. Shariff, Ph.D. is an Associate Professor in the Faculty of Law, University of Manitoba. Thanks are owed to research assistant Kali Faingold (J.D. candidate 2024) as well as to Michael Siklosi (J.D. candidate 2024) whose research assistance was made possible through the Legal Research Institute, University of Manitoba.

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The Kyoto Protocol is an international agreement connected with the United Nations Framework Convention on Climate Change which sets binding targets for reducing 1990 GHG emission levels by an average of 5% between the years 2008 and 2012. Canada set a 6% reduction target. For further information see, United Nations Framework Convention on Climate Change, Kyoto Protocol, UN Doc FCCC/CP/1997/7Add.1, Dec. 10, 1997; 37 ILM 22 (1998), available at https://perma.cc/6UUP-9CNG (accessed May 2022).

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In 2005, Bloomberg Business Week magazine ranked Manitoba as the Number One regional government in the world in terms of battling climate change. It named Manitoba's then Premier Gary Doer among the Top 20 international leaders in the battle against climate change. See "Battling Climate Change", Bloomberg Business Week, Online Extra (December 12, 2005). In 2008, The David Suzuki Foundation ranked Manitoba climate change policies in the top three provincial/territorial policies. See David Suzuki Foundation, "Provincial Power Play--Breaking Away from Federal Inaction on Climate Change" (2008), at p. 9, available at https://perma.cc/62P5-BSRX (accessed May 2022).

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The Climate Change and Emissions Reduction Act, C.C.S.M. c. C135 (repealed November 8, 2018).

8, 2018.[4]

Manitoba's target of 17.5 megatonnes ("Mt") of GHGs by 2012 appeared achievable with reasonable effort and without major disruptions, economic or otherwise as of 2009. It became clear, however, that the much-touted objective would not be met when, in 2010, the Manitoba Department of Conservation forecasted a gap of 2.7 Mt in meeting the 2012 target and conceded by the end of 2011 that the target would not be achieved, in part due to a failure to achieve the anticipated credits from exports of hydroelectricity.[5] Manitoba did successfully achieve its interim goal of stabilizing GHG emissions at 2000 levels by 2010.[6]

In 2017, Manitoba garnered a negative report from Manitoba's Office of the Auditor General which found that despite past efforts, "there had been little change in Manitoba greenhouse gas emissions".[7] The Auditor General described *inter alia* the existence of "several gaps in the planning, monitoring, and reporting processes for initiatives aimed at reducing greenhouse gas emissions and at adapting to climate change impacts". However, the Manitoba government was already in the process of developing a new "Made-in-Manitoba" plan that would "pave the way" for the province to be "Canada's cleanest, greenest and most climate resilient province".[8] The Manitoba government then introduced *The 2018 Climate and Green Plan Act*. The 2018 Act requires the Minister charged with administering the Act to develop a "climate and green plan", establish GHG emissions reductions goals, and prepare an annual report. The Act further establishes: (i) an "Expert Advisory Council" (to provide ongoing advice and recommendations to the Minister); (ii) a "Low Carbon Government Office" (to advance within government entities, GHG emissions reduction and sustainable operation strategies); and

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The Climate and Green Plan Act, C.C.S.M., c. C134.

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Office of the Auditor General, Manitoba, Report to the Legislative Assembly--Performance Audits (December 2010), at p. 10, available at https://www.oag.mb.ca/audit-reports/report/report-to-the-legislative-assembly-performance-audits/ (accessed May 2022).

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Environment Canada, Sixth National Report on Climate Change 2014 (2013), at p. 69, available at http://publications.gc.ca/collections/collection_2014/ec/En4-73-2013-eng.pdf (accessed May 2022).

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Office of the Auditor General, Manitoba, Managing Climate Change (a follow-up to our December 2010 audit) (October 2017), at p.11, available at https://www.oag.mb.ca/audit-reports/report/managing-climate-change-a-follow-up-to-our-december-2010-audit/ (accessed May 2022).

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See Manitoba, "Province Responds to Auditor General's Report on Managing Climate Change" (October 25, 2017), available at https://news.gov.mb.ca/news/index.html?item=42372 (accessed May 2022).

(iii) a "Made-in-Manitoba Climate and Green Fund" (to provide support for various projects, studies and activities).[9]

More recently, Manitoba introduced ~~*The 2018 Climate and Green Plan Act*~~*Manitoba's Plan to Net Zero*, which sets an ambitious goal for the province by 2050. As a comprehensive plan, it includes province-wide priorities, government action to lead the change, collaboration with Indigenous peoples, building the next generation of workers, and actions to take across all sectors. In addition to reducing and eliminating emissions, Manitoba aims at removing or offsetting emissions through a combination of activities that could include land and water-based carbon sequestration, carbon capture utilization and storage (CCUS), carbon stored building materials, and carbon offsets.[1] ~~will be discussed throughout this chapter.~~

Manitoba's provincial government has long recognized hydroelectric power as one of several characteristics that gives the province an advantage in its efforts to reduce GHG emissions. Virtually all electricity in the province is generated by hydroelectric stations operated by Manitoba Hydro, the province's Crown-owned monopoly electricity supplier. Opportunities also continue to exist for the development of wind power and more extensive use of geothermal energy.

The vastness of Manitoba is also viewed by its provincial government as an asset, providing opportunities for agriculture and forestry carbon sinks. Capitalizing on these natural carbon stores, Manitoba's Peatlands Stewardship Strategy includes the 2014 *Peatlands Stewardship Act*, which aims to balance responsible economic development with conservation of peatland ecosystems.[10] The legislation is the first of its kind in Canada and builds upon the existing ban against peat mining in provincial parks as well as in the site east of Lake Winnipeg where Pimachiowin Aki, the ancestral home of the Anishinaabeg, is located and which received UNESCO world heritage status in 2018.[11]

For additional discussion of these and other initiatives, see heading §8:19, Major Initiatives.

II. Manitoba's Climate Change Profile

A. GHG Emissions

8:2. Historical Emissions

In 2024, the province emitted approximately 21.4 Mt of GHGs, measured in tonnes of

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9 *The Climate and Green Plan Act*, C.C.S.M., c. C134, ss. 2, 3, 5, 7, 9 and 11.

[1] Government of Manitoba, "Manitoba's Path to Net Zero" (October 2025), online (pdf): https://www.manitoba.ca/asset_library/en/netzero/mb-path-to-net-zero.pdf

10 *The Peatlands Stewardship and Related Amendments Act*, S.M. 2014, c. 27.

11 *The Peatlands Stewardship and Related Amendments Act*, S.M. 2014, c. 27. See also Manitoba, "Province Introduces Woodland Caribou Recovery Strategy", News Release (April 30, 2014), available at https://news.gov.mb.ca/news/index.html?item=30647 (accessed May 2022).

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carbon dioxide equivalent ("CO2e"). This represented an increase of nearly ~~17.6%,~~15% or ~~3.3~~3.1 Mt, over Manitoba's 18.3 Mt of emissions in 1990~~., the baseline year used for measuring Kyoto compliance.~~[2] It equated to a contribution of approximately 3% to Canada's national total of ~~734~~ 684 Mt for 2024~~008~~.[3] In 2023, Manitoba's emissions per capita were 15.3 tonnes of C02e, which is 16 per cent below the Canadian average of 18.2 tonnes per capita.

In 2009, Manitoba's GHG emissions were reduced by 1.37 Mt.[4] Almost half of the 2009 reductions were attributed to four events: the scheduled permanent closure of a northern smelter; the changeover of a thermal generating plan from coal to natural gas; reduced emissions from a private natural gas pipeline compressor station; and closure of a paper mill due to economic considerations.[5]

From 2011 to 2018, Manitoba saw an increase in GHG emissions from 19.1 Mt to 22.2 Mt, with emissions slowly declining since 2018. Manitoba's historic growth of emissions has remained relatively flat and lower than the Canadian average. From 2005 to 2023, Manitoba's economy has grown more rapidly than emissions, with emissions intensity for the entire economy (GHG per GDP) declining by 25 per cent over this period. This progress reflects improvements in energy efficiency, the phase-out of coal, fuel switching, and other measures.[2] ~~Reductions for 2011 and 2012 were 0.939 Mt and 1.018 Mt respectively.[6] The largest~~

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~~Environment Canada, National Inventory Report: Greenhouse Gas Sources and Sinks in Canada, 1990-2008 (April 2010), at Part 3, Annex 14, p. 77. In 2005, Manitoba emitted approximately 20.3 Mt of GHGs, representing nearly 12.8% or 2 Mt over Manitoba's emissions in 1990. Environment Canada, National Inventory Report: Greenhouse Gas Sources and Sinks in Canada, 1990-2006 (May 2008), at Annex 11, pp. 580-81.~~

Canadian Centre for Energy Information. "Greenhouse Gas Emissions – National Inventory Report (NIR)," (last modified 13 May 2025), online (website): https://energy-information.canada.ca/en/subjects/greenhouse-gas-emissions-national-inventory-report-nir

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~~Office of the Auditor General, Manitoba, Report to the Legislative Assembly - Performance Audits (December 2010), at pp. 9 and 14, available at https://www.oag.mb.ca/audit-reports/report-to-the-legislative-assembly-performance-audits/ (accessed May 2022).~~

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Environment Canada, Canada's Energy and GHG Emissions Projections: Reference Case 2006-2020-Provincial and Territorial Tables (March 2008).

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For discussion, see Manitoba Wildlands, "Recession Lowers Manitoba GHG Emissions", available at https://perma.cc/9JQK-C2ER (accessed May 2022).

[2] Government of Manitoba, "Manitoba's Path to Net Zero" (October 2025) at 8, online (pdf): https://www.manitoba.ca/asset_library/en/netzero/mb-path-to-net-zero.pdf

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~~Manitoba, Manitoba's Report on Climate Change for 2012, Department of Conservation and~~

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~~sources of GHG reductions in 2012 were the ethanol mandate (0.41 Mt), the regulation limiting the use of Manitoba Hydro's sole remaining coal-fired facility (0.343 Mt) and Manitoba Hydro's Power Smart programs (0.41 Mt).[7]~~

Despite past reductions, Manitoba's emissions increased on the whole from 1990-2024~~12~~. Emissions for 2024~~12~~ totalled 21.4~~1~~ Mt of GHGs[8] and continued to account for nearly 3% of Canada's national total emissions.[9] Between 1990 and 2024~~00~~, Manitoba's GHG emissions grew by 17~~5~~%. ~~(2.7 Mt). While emissions decreased approximately 2.4% (0.5Mt) between 2000 to 2012, in 2017 Manitoba's emissions increased to 21.7 Mt.[10] This represented a 7.7% (1.5 Mt) increase in emissions from 2005, continuing to account for 3% of total Canadian emissions.[11]~~

In 2023, emissions categorized based on the International Panel on Climate Change (IPCC) sectors shows that approximately 62% of Manitoba's emissions are from fossil fuel intensive activities. This includes consumption of fossil fuel for transportation (39%) and

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~~Water Stewardship (February 2014) at 9, available at https://perma.cc/D7M6-79S9 (accessed May 2022).~~

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~~Manitoba, Manitoba's Report on Climate Change for 2012, Department of Conservation and Water Stewardship (February 2014) at 9, available at https://perma.cc/D7M6-79S9 (accessed May 2022).~~

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Environment Canada, National Inventory Report: Greenhouse Gas Sources and Sinks in Canada, 1990-2012 (April 2014), Part 3, Annex 11, Table A11-14, p. 27, available at https://publications.gc.ca/collections/collection_2014/ec/En81-4-2012-3-eng.pdf (accessed May 2022).

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Manitoba, Manitoba's Report on Climate Change for 2012, Department of Conservation and Water Stewardship (February 2014) at 6, available at https://perma.cc/D7M6-79S9 (accessed May 2022).

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~~Environment and Climate Change Canada, National Inventory Report 1990-2017: Greenhouse Gas Sources and Sinks in Canada (2019) at Part 3, Annex 11, Table A11-14, p. 27, available at https://publications.gc.ca/collections/collection_2019/eccc/En81-4-2017-3-eng.pdf (accessed May 2022).~~

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~~Environment and Climate Change Canada, National Inventory Report 1990-2017: Greenhouse Gas Sources and Sinks in Canada (2019), at Part 1, p. 31. See also Report of the Expert Advisory Council to the Minister of Sustainable Development: A Carbon Savings Account for Manitoba, June 2019 (2019) at p. 13, available at https://perma.cc/39B3-XBYY (accessed May 2022).~~

stationary combustion sources (19%) like heating buildings and homes, generating electricity, fuel use for mining, construction and manufacturing, and fuel use for agriculture.

Moreover, 4 % of greenhouse gases from fossil fuels are also released through fugitive sources like production, processing or storage of oil and natural gas (includes venting and flaring). 35% of remaining emissions come from non-energy intensive sources like methane, 27% come from livestock, manure management and inorganic fertilizer use in the agriculture sector, 6% from methane from landfills and wastewater treatment in the waste sector and 2% from other industrial processes that do not use fossil fuels like production of ammonia, lime, and glass.[3] ~~The 2008 per capita carbon footprint in Manitoba was 18.1 tonnes per person.[12] In comparison, it was 15.9 tonnes per person in 2011[13] and 16.2 tonnes per person in 2017.[14] Manitoba's fairly low per capita emission rate is largely attributable to the abundance of hydroelectric power in Manitoba, with virtually all electricity consumed in the province being generated by 15 hydroelectric stations, except for imports to offset peak periods during seasons with high demand for power.[15] Manitoba Hydro[16] is the sole retail supplier of electricity in the Province of Manitoba. Manitoba Hydro is also the utility supplier of nearly all Manitoba's natural gas and Manitoba's largest source of home and building heating energy.[17] In those operations it further contributes to GHG emissions. Given this source of electricity supply, however,~~

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[3] Government of Manitoba, "Manitoba's Path to Net Zero" (October 2025) at 6, online (pdf): https://www.manitoba.ca/asset_library/en/netzero/mb-path-to-net-zero.pdf

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~~Environment Canada, National Inventory Report: Greenhouse Gas Sources and Sinks in Canada, 1990-2008 (April 2010), at Part 3, Annex 14, at pp. 77-8.~~

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~~Environment Canada, Canada's Emission Trends 2013, Table 17, p. 35, Environment Canada (2013), available at https://perma.cc/9QB8-M928 (accessed May 2022).~~

~~[14]~~

~~Compare to Report of the Expert Advisory Council to the Minister of Sustainable Development: A Carbon Savings Account for Manitoba, June 2019 (2019) at p. 14, available at https://www.gov.mb.ca/asset_library/en/eac/eac_carbon_savings_report2019.pdf (accessed May 2022).~~

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~~Environment Canada, National Inventory Report: Greenhouse Gas Sources and Sinks in Canada, 1990-2008 (April 2010), at Part 3, Annex 14, at pp. 42 and 77-8.~~

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~~More formally, the Manitoba Hydro-Electric Board, a provincial Crown corporation established in 1961 pursuant to *The Manitoba Hydro Act*, C.C.S.M. c. H190, s. 22.~~

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~~Canadian Home Builders' Association, "Energy Use and GHG Emission Performance in Manitoba Homes: 1990 to 2005".~~

~~Manitoba's carbon footprint remains small relative to the national footprint.[18] Accordingly, because it is already producing close to 100% of its energy from clean sources, Manitoba, unlike other provinces, must seek out other ways to significantly reduce GHG emissions going forward.~~

Unlike neighbouring Saskatchewan which has seen a boom in oil and natural gas production and a corresponding jump in GHG emission rates, the Manitoba economy does not have an industrial sector that is predominant in the production of GHG emissions at the national level.

Manitoba is unique in that the majority of its GHG emissions come from many dispersed emitters within a wide range of sectors rather than a few large emitters, as is the case with other Canadian jurisdictions.[19] Broken down by economic sector, agriculture accounts for approximately 33% of GHG emissions, followed by transportation at 31%, building heat at 13%, industry (heavy, light manufacturing, construction and forestry) at 11%, waste at 7%, and oil and gas at 4%. Electricity accounts for less than one per cent of Manitoba's GHG emissions.[4] ~~That said, of Manitoba's total GHG emissions in 2020 (21.7 Mt), 86% arose from three primary sources: transport; agriculture; and stationary combustion.[20]~~

Canada's most recent National Inventory Report, 2024~~2~~ shows that these top three sectors ~~sources~~ have consistently been the dominant source of emissions in the province from ~~1990-2020~~2021-2024 and are identified as the principal sectors for targeting GHG reduction efforts in the province.[21] The National Inventory Report, 2024~~22~~ also shows that between 2005 and 2024~~0~~,

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~~See for example Environment and Climate Change Canada, National Inventory Report 1990-2017: Greenhouse Gas Sources and Sinks in Canada - Executive Summary (2019), Table ES-4, at p. 12.~~

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Manitoba, Manitoba's Report on Climate Change for 2012, Department of Conservation and Water Stewardship (February 2014), at p. 10, available at https://perma.cc/D7M6-79S9 (accessed January 2020).

[4] Government of Manitoba, "Manitoba's Path to Net Zero" (October 2025) at 7, online (pdf): https://www.manitoba.ca/asset_library/en/netzero/mb-path-to-net-zero.pdf

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~~Environment and Climate Change Canada, National Inventory Report 1990-2020: Greenhouse Gas Sources and Sinks in Canada (2022), at Part 3, Annex 11, Table A11-14, p.28, available at https://unfccc.int/documents/461919 (accessed May 2022).~~

~~21 Canadian Centre for Energy Information. "Greenhouse Gas Emissions – National Inventory Report (NIR)," (last modified 13 May 2025), online (website): https://energy-information.canada.ca/en/subjects/greenhouse-gas-emissions-national-inventory-report-nir~~

~~Environment and Climate Change Canada, National Inventory Report 1990-2020: Greenhouse Gas Sources and Sinks in Canada (2022), at Part 3, Annex 11, Table A11-14, p.28, available at https://unfccc.int/documents/461919 (accessed May 2022). See also discussion in Report of the Expert Advisory Council to the Minister of Sustainable Development: A Carbon Savings~~

Manitoba's emissions have fluctuated: from 210.5 Mt in 2005, peaking at 22.6 Mt in 2018, and decreasing to 21.47 Mt in 202040.[21]

Between 1990 and 202040, emissions from the transport sector increased from 4.97.1 Mt to 8.16.3 Mt, contributing 29.737% to the 2024 20 provincial total.[22] The majority of these emissions are related to road transportation (4.55.4 Mt)[23] with the increase largely attributable to more kilometreskilometers driven and an increase in the total vehicle fleet. An increase in the use of light-duty gasoline trucks (LDGTs) and heavy-duty gasoline trucks (HDGTs) over light-duty gasoline vehicles (LDGVs) continues to reflect a national trend in driver preference and also contributed to the increase in emissions.[24]

Between 1990 and 202040, emissions from the agriculture sector increased from 4.21 Mt to 6.13 Mt, accounting for roughly 29% of Manitoba's total GHG emissions in 202040.[25] Manitoba's agriculture emissions stand in contrast to the national average of 8.2% (or 55 Mt)

Account for Manitoba, June 2019 (2019) at pp. 15-17, available at https://www.gov.mb.ca/asset_library/en/eac/eac_carbon_savings_report2019.pdf (accessed May 2022).

[21] Canadian Centre for Energy Information. "Greenhouse Gas Emissions – National Inventory Report (NIR)," (last modified 13 May 2025), online (website): https://energy-information.canada.ca/en/subjects/greenhouse-gas-emissions-national-inventory-report-nir

[22] Environment and Climate Change Canada, National Inventory Report 1990-2020: Greenhouse Gas Sources and Sinks in Canada (2022), at Part 3, Annex 11, Table A11-14, p.28, available at https://unfccc.int/documents/461919 (accessed May 2022).

[23] Environment and Climate Change Canada, National Inventory Report 1990-2020: Greenhouse Gas Sources and Sinks in Canada (2022), at Part 3, Annex 11, Table A11-14, p.28, available at https://unfccc.int/documents/461919 (accessed May 2022).

[24] Environment and Climate Change Canada, National Inventory Report 1990-2020: Greenhouse Gas Sources and Sinks in Canada (2022), at Part 1, pp. 45-47, available at https://unfccc.int/documents/461919 (accessed May 2022).

[25] Canadian Centre for Energy Information. "Greenhouse Gas Emissions – National Inventory Report (NIR)," (last modified 13 May 2025), online (website): https://energy-information.canada.ca/en/subjects/greenhouse-gas-emissions-national-inventory-report-nir

Environment and Climate Change Canada, National Inventory Report 1990-2020: Greenhouse Gas Sources and Sinks in Canada (2022) at Part 3, Annex 11, Table A11-14, p.28, available at https://unfccc.int/documents/461919 (accessed May 2022).

which has remained relatively stable since 2005 levels.[26] These increases are largely associated with increases in N2O and CH4 which are attributable to increases in the application of inorganic nitrogen fertilizer in crop production and changes in livestock populations and manure management.[27]

Over 99% of Manitoba's electricity currently comes from renewable sources, including hydro and wind. As a result, emissions from the electricity sector remain very low, accounting for only 0.3 per cent of total provincial GHG emissions. Manitoba imports all its refined fossil fuels, while producing crude oil for export, which accounts for much of the province's GHG emissions from energy[5]. ~~Between 1990 and 2020, emissions from the stationary combustion (i.e. electricity and heat production, manufacturing and construction industries, electricity generation, mining, petroleum refining, oil and gas extraction, agriculture and forestry) decreased from 4.9 Mt to 4.2 Mt, and accounted for 19% of Manitoba's total GHG emissions in 2020.[28] Emission reductions are largely attributable to changes associated with public electricity and heat production.[29]~~

Manitoba's transportation sector accounted for 31 per cent (6.6 Mt) of total provincial GHG emissions in 2023. This number is in large part due to the reliance on personal vehicles for day-to-day travel in the province. Agriculture and agri-food account for over 7 per cent of Manitoba's GDP, employ 34,000 people, and generate about one-third (7.10 Mt) of provincial GHG emissions. These emissions come from energy use in equipment and vehicles, as well as fertilizers, soils, and livestock. Buildings are Manitoba's third largest source of emissions (2.8

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26 Environment and Climate Change Canada, National Inventory Report 1990-2020: Greenhouse Gas Sources and Sinks in Canada (2022), at Part 1, Chapter 2.3, Table 2-3, p.38, available at https://unfccc.int/documents/461919 (accessed May 2022). Note however that overall, Canada's emissions within the sector have increased by 34% between 1990 and 2020. National Inventory Report 2022 at Part 1, p. 145.

27 Environment and Climate Change Canada, National Inventory Report 1990-2020: Greenhouse Gas Sources and Sinks in Canada (2022), at Part 1, p. 145 et seq., available at https://unfccc.int/documents/461919 (accessed May 2022).

[5] Government of Manitoba, "Manitoba's Path to Net Zero" (October 2025) at 17, online (pdf): https://www.manitoba.ca/asset_library/en/netzero/mb-path-to-net-zero.pdf

~~28 Environment and Climate Change Canada, National Inventory Report 1990-2020: Greenhouse Gas Sources and Sinks in Canada (2022), at Part 3, Annex 11, Table A11-14, p.28, available at https://unfccc.int/documents/461919 (accessed May 2022).~~

~~29 Environment and Climate Change Canada, National Inventory Report 1990-2020: Greenhouse Gas Sources and Sinks in Canada (2022), at Part 3, Annex 11, Table A11-14, p.28, available at https://unfccc.int/documents/461919 (accessed May 2022).~~

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Mt), making up 13% of provincial GHGs, mostly from heating. Waste accounted for approximately 7% of Manitoba's emissions (1.36 Mt) in 2023, mainly from landfill methane (91%) and wastewater (7%). Managing waste is costly, energy-intensive, and creates land use challenges.[6] ~~Manitoba has only six large industrial emitters in six different sectors (nitrogen fertilizer, natural gas pipelines, lime, pulp and paper, chemicals - ethanol, mining) which in 2017 accounted for approximately 7% of Manitoba's total emissions.[30] Overall, emissions from industrial processes and product use (such as halocarbons, mineral products, and non-energy products from fuels) roughly doubled between 1990 and 2020. Emissions from these sources accounted for approximately 2.7% (0.49 Mt) in 1990. In 2020, they made up 4.6% (0.99 Mt) of Manitoba's total GHG emissions.[31]~~

8:3. Projected Emissions

Under the Kyoto Protocol, Manitoba previously committed to achieving the Canadian target of reducing GHG emissions by 6% below 1990 levels between 2008-2012.[1] This commitment became law in Manitoba in the form of the *Climate Change and Emissions Reductions Act* ("the *2008 Climate Change Act*").[2] The Act received Royal Assent and came into force on June 12, 2008, but was repealed by *The Climate and Green Plan Act*[3] which came into force on November 8, 2018 ("*The 2018 Climate and Green Plan Act*").

The repeal of *The 2008 Climate Change Act* and introduction of the *Made-in-Manitoba*

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[6] Government of Manitoba, "Manitoba's Path to Net Zero," (October 2025), online (pdf): https://www.manitoba.ca/asset_library/en/netzero/mb-path-to-net-zero.pdf

~~[30] Report of the Expert Advisory Council to the Minister of Sustainable Development: A Carbon Savings Account for Manitoba, June 2019 (2019), at p. 17, available at https://www.gov.mb.ca/asset_library/en/eac/eac_carbon_savings_report2019.pdf (accessed May 2022).~~

~~[31] Environment and Climate Change Canada, National Inventory Report 1990-2020: Greenhouse Gas Sources and Sinks in Canada (2022), at Part 3, Annex 11, Table A11-14, p.28, available at https://unfccc.int/documents/461919 (accessed May 2022).~~

[1] See Manitoba, Executive Summary, Meeting Our Commitments: Reducing Emissions in Manitoba and Beyond, at p. 6, available at https://www.gov.mb.ca/asset_library/en/beyond_kyoto/executive_summary.pdf (accessed May 2022).

[2] *The Climate Change and Emissions Reduction Act*, C.C.S.M. c. C135 ("*The 2008 Climate Change Act*") (repealed November 8, 2018).

[3] *The Climate and Green Plan Act*, C.C.S.M., c. C134.

Climate and Green Plan along with the promulgation of *The 2018 Climate and Green Plan Act*[4] came soon after the release of a highly critical report issued by Manitoba's Office of the Auditor General in October 2017 ("Auditor General's Report").[5] The Auditor General's Report was an update of a previous 2010 report and covered the period of April 2010 to July 2017. The Report was part of a collaboration involving most provincial legislative audit offices and the Auditor General of Canada and sought to determine the extent to which federal, provincial and territorial governments were meeting commitments to reduce GHG emissions and adapting to climate change.[6]

According to the Auditor General's Report, although the Department of Sustainable Development was aware by the fall of 2009 that Manitoba was not going to meet its legislated 2012 target, the Department did not update its plan until December 2015.[7] The Auditor General further criticised the December 2015 Plan as being too "high-level" and lacking in sufficient detail, analysis (including scientific and economic), inter-departmental monitoring and reporting to comprehensively set and tackle emissions targets.[8] The Auditor General also found that the Department's 2011 initiative to create a three-phase provincial plan for adapting to climate

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The Climate and Green Plan Act, C.C.S.M., c. C134.

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Office of the Auditor General, Manitoba, Managing Climate Change (a follow-up to our December 2010 audit) (October 2017), at p.11, available at https://www.oag.mb.ca/audit-reports/report/managing-climate-change-a-follow-up-to-our-december-2010-audit/ (accessed May 2022). For the earlier 2010 report, see Office of the Auditor General, Manitoba, Report to the Legislative Assembly--Performance Audits (December 2010), available at https://www.oag.mb.ca/audit-reports/report/report-to-the-legislative-assembly-performance-audits/ (accessed May 2022).

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Office of the Auditor General, Manitoba, Perspectives on Climate Change Action in Canada (March 2018), at p. 3, available at https://www.oag.mb.ca/audit-reports/report/perspectives-on-climate-change-action-in-canada/ (accessed May 2022).

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Office of the Auditor General, Manitoba, Managing Climate Change (a follow-up to our December 2010 audit) (October 2017), at p.3, available at https://www.oag.mb.ca/audit-reports/report/managing-climate-change-a-follow-up-to-our-december-2010-audit/ (accessed May 2022). Note that the Department of Sustainable Development is now the Department of Environment, Climate and Parks. For further discussion see this chapter at §8:8.

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Office of the Auditor General, Manitoba, Managing Climate Change (a follow-up to our December 2010 audit) (October 2017), at pp. 3-4, 18-20, available at https://www.oag.mb.ca/audit-reports/report/managing-climate-change-a-follow-up-to-our-december-2010-audit/ (accessed May 2022).

change impacts had not progressed across government departments.[9] However, the Auditor General noted that despite a lack of coordination, the Department of Sustainable Development along with other government departments and agencies had nonetheless commenced addressing risks and opportunities associated with impacts (discussed later in §8:18 of this chapter).[10]

In July 2017, the federal government and all provinces and territories with the exception of Manitoba and Saskatchewan signed the *Pan-Canadian Framework on Clean Growth and Climate Change* ("*Pan-Canadian Framework*") which was designed to achieve Canada's commitment under the 2015 Paris Agreement.[11] Under the Paris Agreement, Canada committed to reducing its emissions to 30% below 2005 levels by 2030 and to take steps for adapting to climate change impacts.[12] Manitoba's initial refusal to sign the *Pan-Canadian Framework* related to Manitoba's objection to the federal government's carbon pricing plan (discussed further in §8:18 and §8:19 of this chapter).[13] Note that in April 2021, the Prime Minister of Canada announced a new national emissions reduction target of 40-45% below 2005 levels by 2030.[14]

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Office of the Auditor General, Manitoba, Managing Climate Change (a follow-up to our December 2010 audit) (October 2017), at pp. 4-5, 22-23, available at https://www.oag.mb.ca/audit-reports/report/managing-climate-change-a-follow-up-to-our-december-2010-audit/ (accessed May 2022).

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Office of the Auditor General, Manitoba, Managing Climate Change (a follow-up to our December 2010 audit) (October 2017), at pp. 4-5, 23-28, available at https://www.oag.mb.ca/audit-reports/report/managing-climate-change-a-follow-up-to-our-december-2010-audit/ (accessed May 2022).

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Canada, Pan-Canadian Framework on Clean Growth and Climate Change, available at https://www.canada.ca/en/services/environment/weather/climatechange/pan-canadian-framework.html (accessed May 2022).

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Canada ratified the Paris Agreement on October 5th, 2016 and it entered into force on November 4th, 2016.

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For additional discussion see Office of the Auditor General, Manitoba, Managing Climate Change (a follow-up to our December 2010 audit) (October 2017), at p.10, available at https://www.oag.mb.ca/audit-reports/report/managing-climate-change-a-follow-up-to-our-december-2010-audit/ (accessed May 2022).

14

Canada, Prime Minister Trudeau Announces Increased Climate Ambition (April 22, 2021) available at https://pm.gc.ca/en/news/news-releases/2021/04/22/prime-minister-trudeau-announces-increased-climate-ambition (accessed May 2022).

This was followed by the federal *Canadian Net-Zero Emissions Accountability Act* which received Royal Assent in June 2021 and enshrined in legislation, the new 2030 reduction target as Canada's Nationally Determined Contribution (NDC) under the Paris Agreement as well as a commitment to revise the national target every five years in order to achieve net-zero greenhouse gas emissions in Canada by 2050.[15]

As mentioned, Manitoba continues to account for approximately 3% of Canada's total emissions, with Canada in turn accounting for approximately 1.~~46~~% of the world's total emissions.[7] According to the Auditor General's 2017 Report, Manitoba's GHG emissions are anticipated to grow to approximately 23 Mt by 2030. However, it is important to note that smoke from forest fires is expected to be a significant source of emissions in 2025 and may affect those numbers. Manitoba has set two Emissions Targets thus far, both of which are for cumulative GHG emissions reductions. The 2024 NIR shows that Manitoba's 2018-2022 Emissions Reductions Target of 1 Mt cumulative emissions reduction target has been achieved, with reductions totalling 2.45 Mt for this period. Manitoba's current goal is to reduce emissions by 5.6 Megatonnes (Mt) between 2023-2027.[8] ~~A June 2019 report from the Expert Advisory Council (established under *The 2018 Climate and Green Plan Act*) to the Minister of Sustainable Development provides a forecast comparison using actual emissions and various baseline cases. In the report, the Expert Advisory Council's comparative forecasts for Manitoba for 2025 range from 19.9 Mt to 23.0 Mt.~~ On top of that, ~~More recently,~~ Environment and Climate Change Canada modelled projected emissions of Manitoba (including implemented provincial and federal environmental measures within the model). The model suggests provincial emissions will remain below 23 Mt in the year 2030.[16]

B. Climate Change Impacts

8:4. Historical Impacts

There is evidence that Manitoba is experiencing climate change impacts.[1] There are also

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Canadian Net-Zero Emissions Accountability Act, S.C. 2021, c. 22 at ss. 1.1(2), 4 and 6.

7 Monica Crippa et al, "GHG Emissions of All World Countries – 2025 Report", (2025), online: https://data.europa.eu/doi/10.2760/9816914,

8 Government of Manitoba "Climate Action: Tracking Progress" (Accessed 29 May 2026), online: https://www.gov.mb.ca/climateaction/trackingprogress/index.html

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Environment and Climate Change Canada, Canada's Greenhouse Gas and Air Pollutant Emissions Projections 2021 (2022), at pp.12 and 34-36, available at https://publications.gc.ca/collections/collection_2022/eccc/En1-78-2021-eng.pdf (accessed May 2022).

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See, for example, International Institute for Sustainable Development, Climate Change Impacts in Manitoba (March 2007). The IISD, was established in 1990 and is a Canadian-based, not-for-profit organization that engages in policy research in pursuit of sustainable development. For more information on the IISD see «www.iisd.org» (accessed May 2022).

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recent reported occurrences that may be climate change impacts: the winter road system, consisting of ice roads developed over lakes and other obstacles in order to provide seasonal access to remote, northern communities, have become less reliable; seasons have become shorter because of higher temperatures and earlier melting; polar bear populations have, at least anecdotally, been observed to be in decline as has the weight of bears; there are more icefree days in the Arctic regions; and unpredictable weather and increases in extreme weather events including insufficient or excessive rainfall and snowfall events as well as tornados. On June 22, 2007, Canada's first category F5 tornado (the most powerful category) hit the town of Elie, Manitoba 40 kilometers west of Winnipeg.[2]

8:5. Projected Impacts

Manitoba expects to see earlier and more significant climate changes than many other parts of the country. In 2001, the Manitoba Clean Environment Commission[1] and the International Institute for Sustainable Development released *Manitoba and Climate Change: A Primer*,[2] which describes a number of anticipated climate change impacts for Manitoba. The province expects to see significant climate change effects on long-term weather patterns, some of which would not necessarily be adverse to living conditions or to all economic activities in the province. Manitobans could see a longer growing season, reduced winter heating costs and an extended shipping season at the Port of Churchill, the only seaport in the prairie provinces. On the other hand, transportation to Churchill may be hindered by melting permafrost, resulting in instability in the Hudson Bay Railway line, Churchill's only transportation link to the south.

Southern Manitoba, where the vast majority of the population resides, currently experiences a northern continental climate. Northern Manitoba has a sub-arctic climate. With

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For example, in the last century, Manitoba's temperature has increased by 1.0° Celsius which is higher than the 0.6° Celsius global average. See Climate Change Connection, “Breaking Records”, available at https://perma.cc/6S2Q-8C9S (accessed May 2022).See also ClimateWest, Prairie Region Adaptation Initiative, Preparing for Climate Change in the Prairie Provinces: Regional survey outcomes on the climate adaptation priorities and progress of communities (December 2021), available at https://climatewest.ca/publications/preparing-for-climate-change-in-the-prairie-provinces-regional-survey-outcomes-on-the-climate-adaptation-priorities-and-progress-of-communities/ (accessed May 2022).

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The Manitoba Clean Environment Commission is an arms-length provincial agency established under *The Environment Act* that “encourages and facilitates public involvement in environmental matters and offers advice and recommendations to the Minister of Sustainable Development with respect to environmental issues, project approvals and environmental licences”. See Manitoba Clean Environment Commission at «www.cecmanitoba.ca» (accessed May 2022).

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See Manitoba Clean Environment Commission and the International Institute for Sustainable Development, Manitoba Climate Change: A Primer (2001), available at https://perma.cc/V57X-LWPL (accessed May 2022).

climate change, summers are expected to be warmer and drier while winters are expected to be warmer with greater precipitation, and in all seasons, more variability in precipitation is expected from year to year. Extreme weather events and their intensity are also expected to increase.[3]

Manitoba is expected to experience mid-season thaws in winter, resulting in increased risk of flood due to frozen conditions and ice damming. Spring flooding, already a significant concern in some parts of southern Manitoba, may increase due to variability of climatic conditions. On the other hand, summer river flows are expected to decrease due to reduced snow melt and glacial run-off from the Alberta Rockies. This will be of particular significance to northern rivers and Lake Winnipeg.[4]

Increased temperatures are expected to move the range of the boreal forest northward. This raises the question as to whether certain natural species will adapt sufficiently to the climatic changes such as changes in temperature and precipitation as well as issues related to the movement of previously foreign species northward. Periods of significantly drier weather, or even drought, also increase the risk of forest fires, insect outbreaks, invasive insect species and severe weather events that all result in destruction of forest.[5]

With respect to potential benefits, a longer growing season could result in the ability to grow a greater variety of crops similar to those grown in the central United States. On the other hand, reduced water supplies, the potential for increased drought and the possibility of more frequent and severe weather events such as hail storms and tornados may adversely affect productivity and the ability to maintain rural population centres. Increased temperatures also bring the risk of an increased range of weeds and insect pests.[6]

III. Legal Framework

A. Constitutional Framework

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3 See Manitoba Clean Environment Commission and the International Institute for Sustainable Development, Manitoba Climate Change: A Primer (2001), available at https://perma.cc/V57X-LWPL (accessed May 2022).

4 See Manitoba Clean Environment Commission and the International Institute for Sustainable Development, Manitoba Climate Change: A Primer (2001), available at https://perma.cc/V57X-LWPL (accessed May 2022).

5 See Manitoba Clean Environment Commission and the International Institute for Sustainable Development, Manitoba Climate Change: A Primer (2001), available at https://perma.cc/V57X-LWPL (accessed May 2022).

6 See Manitoba Clean Environment Commission and the International Institute for Sustainable Development, Manitoba Climate Change: A Primer (2001), available at https://perma.cc/V57X-LWPL (accessed May 2022).

8:6. Generally

The reader is referred to §§6:1 et seq., "Alberta", for a discussion of the constitutional framework affecting the Prairie Provinces. Like Alberta and Saskatchewan, Manitoba did not receive jurisdiction over its natural resources until the *Natural Resources Transfer Agreement* of 1930.[1] Today however, Manitoba has this jurisdiction, as well as other constitutional power in which to ground its regulation of climate change matters. Manitoba did not take issue with shared jurisdiction over climate change regulation with the federal government until 2017, where it was one of two provinces to withhold from signing a federal climate-change framework agreement. In August 2017, the Manitoba government sought a legal opinion *inter alia* on the constitutional authority of the federal government to implement a carbon pricing scheme. The opinion concluded that the federal government likely had such authority pursuant to its taxation power under s. 91(3) of the Constitution. Furthermore, the scheme's "backstop" feature which allows provincial legislatures to opt-out of the federal carbon pricing scheme by enacting provincial legislation to meet or exceed federal objectives was found to be consistent with the concept of "cooperative federalism".[2] The Manitoba government accordingly moved forward with its own *Made-in-Manitoba Climate and Green Plan*. Subsequently, and notwithstanding Manitoba continuing on with other initiatives pursuant to the Plan, Manitoba's challenge of the federal government's decision to impose its carbon tax scheme in Manitoba was decided in favour of the federal government. Manitoba chose not to appeal the decision.[3] For further discussion see §8:18 and §8:19 of this chapter.

B. Legislative and Regulatory Framework

8:7. Introduction

Manitoba has been active in the development of legislation dealing with protection of the environment and human health and safety within the confines of Manitoba's constitutional powers. This section will describe the effects of existing Manitoba legislation that is not specific to solely addressing climate change issues on GHG regulation and the province's response to

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1 *The Manitoba Natural Resources Transfer Act*, C.C.S.M., c. N30.

2 Bryan P. Schwartz, "Legal Opinion on the Constitutionality of the Federal Carbon Pricing Benchmark & Backstop Proposals" (October 6. 2017), available at https://manitoba.ca/asset_library/en/climatechange/federal_carbon_pricing_benchmark_backstop_proposals.pdf (accessed May 2022). For further discussion on climate change and the federal versus provincial jurisdiction debate, see generally A.R. Lucas, "Legal Constraints and Opportunities: Climte Change and the Law", in H. Coward and A.J. Weaver, eds., Hard Choices: Climate Change in Canada (Kitchener-Waterloo: Wilfred Laurier University Press, 2004).

3 Manitoba, "Manitoba Confirms No Appeal in Carbon Tax Case", News Release (November 17, 2021), available at https://news.gov.mb.ca/news/index.html?item=52739&posted=2021-11-17 (accessed May 2022). See also Manitoba v. Canada (Attorney General), 2021 CarswellNat 4640, 2021 CarswellNat 4641, 2021 FC 1115, 44 C.E.L.R. (4th) 273, 2021 D.T.C. 5118 (F.C.).

climate change.

8:8. Environment-- General Legislation

The Environment Act[1]

The express purpose of *The Environment Act* is to develop and maintain an environmental management system in Manitoba that will sustain a high quality of life, including social and economic development, recreation and leisure for current and future generations of Manitobans. It is intended to complement and support the provincial government's planning and policy mechanisms. It is the legislation under which the environmental assessment of projects that have significant effects on the environment are conducted (as discussed below). It also provides mechanisms for public consultation in environmental decision making.[2] With respect to proposals for Class 3 developments, the Act requires "the amount of greenhouse gases to be generated by the proposed development and the energy efficiency of the proposed development" to be taken into account in addition to other potential environmental impacts.[3]

At the time the regulation was introduced, relatively few regulations under the Environment Act were directed toward climate change mitigation, like for example, the Coal and Petroleum Coke Ban for Space Heating Regulation. While Manitoba has since adopted climate related legislation, the majority of the rules under the Act continue to concern environmental protection more broadly. ~~With the exception of the *Coal and Petroleum Coke Ban for Space Heating Regulation*[4] (introduced in 2014), the majority of the regulations promulgated under *The Environment Act* are not directed specifically to climate change issues.~~ However, some of the regulations may nonetheless have incidental effects on total GHG emissions in that they restrict certain activities or require licensing of certain developers and developments. Licensing decisions may include conditions related to GHG emissions. These regulations include: *The Burning of Crop Residue and Non-Crop Herbage Regulation*;[5] *The Disposal of Whey*

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1 *The Environment Act*, C.C.S.M., c. E125.

2 *The Environment Act*, C.C.S.M., c. E125, s. 1.

3 *The Environment Act*, C.C.S.M., c. E125, s. 12.0.2.

4 ~~*Coal and Petroleum Coke Ban for Space Heating Regulation*, Man. Reg. 183/2013 (as amended).~~

5 *The Burning of Crop Residue and Non-Crop Herbage Regulation*, Man. Reg. 77/93 (as amended).

Regulation;[6] *The Incinerators Regulation*;[7] *The Inco Limited and Hudson Bay Mining and Smelting Co., Limited Smelter Complex Regulation*;[8] *The Livestock Manure and Mortalities Management Regulation*;[9] *The Peat Smoke Control Regulation*;[10] and *The Waste Management Facilities Regulation*.[11]

The Carbon Capture and Storage Act[9]

Manitoba Bill 31, known as *the Carbon Capture and Storage Act* (CCS Act), represents a significant legislative effort to combat climate change through the regulation and promotion of carbon capture and storage (CCS) technologies. Introduced in the Manitoba Legislature, this bill aims to provide a comprehensive legal framework for the development, implementation, and management of CCS projects within the province.

Bill 31, *The Carbon Capture and Storage Act* (CCS Act) also aligns with federal CO2 emission credits allowing a cohesive strategy for reducing greenhouse gas emissions. The federal government has implemented a carbon pricing system that includes a carbon tax and an output-based pricing system (OBPS) for large industrial emitters. The CCS Act in Manitoba complements these federal efforts by:

Compliance Reducing Costs: CCS projects developed under the CCS Act can significantly reduce the carbon emissions of industrial facilities. This reduction helps these facilities lower their carbon tax liabilities or receive credits under the OBPS, which sets a cap on emissions and provides credits for staying below that cap.

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6 *The Disposal of Whey Regulation*, Man. Reg. 90/88R (as amended).

7 *The Incinerators Regulation*, Man. Reg. 91/88R (as amended).

8 *The Inco Limited and Hudson Bay Mining and Smelting Co., Limited Smelter Complex Regulation*, Man. Reg. 165/88, which deals with smelter emissions from two of Manitoba's largest GHG and other pollutant emitters located in Flin Flon and Thompson, Manitoba.

9 *The Livestock Manure and Mortalities Management Regulation*, Man. Reg. 42/98 (as amended).

10 *The Peat Smoke Control Regulation*, Man. Reg. 226/89 (as amended).

11 *The Waste Management Facilities Regulation*, Man. Reg. 37/2016 (as amended).

9 John Stefaniuk, "Not Just Hot Air: Manitoba Introduces The Captured Carbon Storage Act" (11 June 2024), online (article): https://www.tdslaw.com/resource/not-just-hot-air-manitoba-introduces-the-captured-carbon-storage-act/

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Generating Emission Credits: By capturing and storing CO2, facilities can generate emission reduction credits. These credits can be traded or used to meet federal compliance obligations, integrating seamlessly with the federal carbon pricing system.

The primary objectives of the Carbon Capture and Storage Act are to establish a legal and regulatory framework for CCS activities, ensure the safe, efficient, and environmentally responsible implementation of CCS projects, promote investment in CCS technologies and infrastructure within Manitoba, and align provincial climate policies with national and international greenhouse gas reduction commitments.

The enactment of Bill 31 positions Manitoba as a leader in climate change mitigation through innovative technologies. By providing a structured approach to CCS, the province aims to reduce its carbon footprint and contribute to Canada's national emissions reduction targets, attract investment in clean technology and green infrastructure, potentially boosting the local economy, and set a precedent for other provinces and regions to develop similar legislative frameworks for CCS.

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The Sustainable Development Act **(Repealed)**[12]

Manitoba became one of the first jurisdictions in Canada to enact sustainability legislation in the form of *The Sustainable Development Act*, which came into force on June 28, 1997. Its purpose was to create a legislative framework through which principles of sustainable development were to be implemented in the provincial public sector and promoted in private industry and society in general.[13] *The Sustainable Development Act* was repealed in November 2018 by *The 2018 Climate and Green Plan Act*.[14]

The Department of Sustainable Development then acted under the authority of several other provincial statutes[15] in addition to *The 2018 Climate and Green Plan Act*. The repeal of *The Sustainable Development Act* along with *The 2008 Climate Change Act* (also repealed by *2018 Climate and Green Plan Act*) led to a reduction of over 20 regulatory requirements.[16] The

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The Sustainable Development Act, C.C.S.M., c. S270 (repealed).

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The Sustainable Development Act, C.C.S.M., c. S270, s. 2 (repealed).

14

The Climate and Green Plan Act, C.C.S.M., c. C134, s.13(b).

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These statutes include but are not limited to: *The Biofuels Act*, C.C.S.M. c. B40; *The Dangerous Goods Handling and Transportation Act*, C.C.S.M. c. D12; *The Environment Act*, C.C.S.M. c. E125; *The Ozone Depleting Substances Act*, C.C.S.M. c. O80; *The Pimachiowin Aki World Heritage Fund Act*, C.C.S.M. c. P70; *The Water Resources Conservation Act*, C.C.S.M. c. W72; *The Wildfires Act*, C.C.S.M. c. W128; and *The Wildlife Act*, C.C.S.M. c. W130.

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department, now the Department of Environment, Climate and Parks, works to incorporate previous principles and guidelines under the former *Sustainable Development Act* (repealed) into department activities, programs and business practices[17] and continues to be the department responsible for providing services to the government for programs related to sustainable development and now also climate change.[18]

The Water Resources Conservation Act[19]

The Water Resources Conservation Act is not directed specifically to GHG reduction but it includes direct reference to climate change in the context of uncertainty related to climate change impacts.[20] The purpose of the Act is to define water basins and sub-basins in Manitoba, to prohibit the inter-basin transfer of water without prior authorization and to provide authority for the enactment of regulations related to the subject matter of the Act.

8:9. Environment-- Environmental Assessment Legislation

The Environment Act sets out the requirements and procedure for the environmental approval of proposed developments. Only those developments that fall within the categories specified under the *Classes of Development Regulation*[1] require licensing. Developments are classified by type based on anticipated environmental impacts and the licensing procedure will vary depending upon the classification. Certain developments may be referred by the Director of

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Manitoba Sustainable Development, Annual Report 2018-2019 (2019) at p. 202, available at https://www.gov.mb.ca/sd/pubs/annual-reports/annual_report_2018_19.pdf (accessed May 2022).

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Manitoba Sustainable Development, Annual Report 2018-2019 (2019) at p. 153, available at https://www.gov.mb.ca/sd/pubs/annual-reports/annual_report_2018_19.pdf (accessed May 2022). See also Manitoba Round Table on Environment and Economy, Principles and Guidelines of Sustainable Development, at https://www.gov.mb.ca/mr/plups/pdf/pgsd.pdf (accessed May 2022).

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Manitoba Sustainable Development, Annual Report 2018-2019 (2019) at p. 18, available at https://www.gov.mb.ca/sd/pubs/annual-reports/annual_report_2018_19.pdf (accessed May 2022).

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The Water Resources Conservation Act, C.C.S.M., c. W72.

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Its preamble provides: “AND WHEREAS, in light of the fact that future domestic needs and the potential effects of climate change are unknown, such a scheme should be based on the precautionary principle and on sustainable water resource management practices”.

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Classes of Development Regulation, Man. Reg. 164/88 (as amended).

Environmental Approvals at Manitoba's Department of Environment, Climate and Parks, the responsible authority for *The Environment Act* licensing, to the Manitoba Clean Environment Commission for a public hearing.[2] For example, large-scale projects must be referred to the Commission. Where projects have been referred to the Commission for review, the Commission generally holds public hearings for the purposes of considering the development. The Commission is required to issue a report that includes recommendations to the Minister as to whether to approve licensing of the development and upon what conditions. The Minister is not obligated to accept the recommendations of the Commission, but is required to provide reasons for refusing to do so.[3]

An amendment to *The Environment Act*, enacted on June 11, 2009 and proclaimed into force December 1, 2009, requires the director or the Minister to take into account--in addition to other potential environmental impacts of the proposed development--the amount of greenhouse gases to be generated by the proposed development and the energy efficiency of the proposed development.[4] Although the *Licensing Procedures Regulation* does not contain any specific requirements for proponents to address issues related to climate change, it does require proponents to include information regarding the potential impacts of the development on the environment, including those that relate to the release of pollutants, which can include GHGs.[5] Further, even prior to the recent amendments, where matters have been referred by the Minister to the Commission for review and recommendations, the Minister typically included reference to the *Guidelines and Principles for Sustainable Development* in the Commission terms of reference.[6] This led proponents to comment upon and give evidence in relation to--and the Commission to inquire as to--the climate change impacts of the development in the course of the environmental approval process.

Manitoba is a party to the *Canada-Manitoba Agreement on Environmental Assessment Cooperation*,[7] which establishes a mechanism for the joint review and evaluation of proposed

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2 See *The Environment Act*, C.C.S.M., c, E125, ss. 10-17.

3 See *The Environment Act*, C.C.S.M., c, E125, ss. 10(1), 11(13) and 12(8).

4 *The Environment Amendment Act*, S.M. 2009, c. 25, s. 8. See also *The Environment Act*, C.C.S.M., c, E125, s. 12.0.2.

5 *Licensing Procedures Regulation*, Man. Reg. 163/88 (as amended).

6 For example, see Manitoba Clean Environment Commission, "Summary of Public Hearings Wuskwatim Generation and Transmission Projects" (September 2004), Recommendation 7.9 at p. 121, available at https://perma.cc/Y2SN-U2PX (accessed May 2022).

7 *Canada-Manitoba Agreement on Environmental Assessment Cooperation, 2007*, available at

developments having federal and provincial impacts.

8:10. Environment-- Wildlife Protection Legislation

The Wildlife Act[1] establishes Manitoba's legislative scheme for the protection of wildlife. This Act provides for the protection of wildlife habitat and imposes prohibitions upon damage or destruction to habitat as well as setting restrictions on hunting, capturing, trapping and killing wildlife. This Act does not contain provisions directly related to climate change law or regulation; however, climate change impacts might be considered to include potential habitat destruction and therefore result in habitat protection measures.

8:11. Environment-- Other Legislation

The Dangerous Goods Handling and Transportation Act[1] does not currently, but could potentially, apply to air emissions into the environment arising from substances categorized as dangerous goods or hazardous waste. While its focus is primarily on the transportation and handling of dangerous goods within the province, it does contain extensive inspection and order-making powers related to environmental incidents. It could therefore conceivably be used by Manitoba's Department of Environment, Climate and Parks to order corrective actions as a means to control unlawful emissions.[2]

The Ozone Depleting Substances Act[3] deals with the regulation and prohibition of ozone-depleting substances and their release into the atmosphere. This Act establishes systems of inspection reporting and offences related to the storage and handling of ozone depleting substances and their use. This Act does not directly focus on climate change--it relates only to climate change to the extent that regulated substances under this Act may be GHGs or have a climate change impact.

The Waste Reduction and Prevention Act[4] seeks to "reduce and prevent the production and disposal of waste in the province consistent with the principles of sustainable development" by *inter alia*: encouraging the development and adoption of "practices and programs for the reduction and prevention of waste"; and enhancing public awareness.[5] Under the Act, the

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https://perma.cc/4Q54-2GUP (accessed May 2022).

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The Wildlife Act, C.C.S.M., c. W130.

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The Dangerous Goods Handling and Transportation Act, C.C.S.M., c. D12.

2

The Dangerous Goods Handling and Transportation Act, C.C.S.M., c. D12, ss. 16 and 17.

3

The Ozone Depleting Substances Act, C.C.S.M., c. O80.

4

The Waste Reduction and Prevention Act, C.C.S.M., c. W40.

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Minister may, for example, consult with various stakeholders (including, for example, manufacturers, retailers, consumers and governments), make recommendations or encourage practices and programs to reduce and prevent waste.[6] The Minister may also enter into any agreements considered "advisable" or do any acts considered "necessary" carry out its purpose.[7] The Act also requires waste reduction and prevention ("WRAP") levies to be collected, remitted and paid by manufacturers, distributors or retailers for "designated materials" as prescribed by regulation.[8] Additionally, the Act requires waste reduction and recycling support ("WRAR") levies to be paid every six months by Class 1, Class 2 or Class 3 waste disposal grounds[9] in accordance with the formula or tariff established by regulation (or if no regulation, by an amount equal to $10 times the number of tonnes of waste received or estimated).[10] For discussion of recent proposed bills, see this Chapter at §8:27 Bills--Waste Diversion and Recycling.

8:12. Energy Legislation

The Manitoba Hydro Act[1] continues the Manitoba Hydro-Electric Board (more commonly known as Manitoba Hydro), as the province's monopoly retail electricity supplier. It is the owner and operator of all Manitoba's hydroelectric generating stations and transmission infrastructure. By way of acquisition of Centra Gas Manitoba Inc., Manitoba Hydro also became the principal retail supplier of natural gas in Manitoba, where it is in a near-monopoly position. As a result of its position in the marketplace and its status as a Crown corporation, Manitoba Hydro is an important policy instrument in the realization of Manitoba's GHG reduction goals. Encouraging domestic electric energy consumption by way of consumption reduction programs such as Manitoba former Hydro's Power Smart program makes more electricity available for export to adjoining provinces and the northern United States.

Electricity and natural gas rates are set by the Manitoba Public Utilities Board ("PUB")

The Waste Reduction and Prevention Act, C.C.S.M., c. W40, s. 1(1).

6

The Waste Reduction and Prevention Act, C.C.S.M., c. W40, s. 3(a) and (b).

7

The Waste Reduction and Prevention Act, C.C.S.M., c. W40, s. 3(f) and (g).

8

The Waste Reduction and Prevention Act, C.C.S.M., c. W40, ss. 12-14.

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The class of waste disposal grounds is determined by regulation under *The Environment Act*. *The Waste Reduction and Prevention Act*, C.C.S.M., c. W40, s.14.1(f).

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The Waste Reduction and Prevention Act, C.C.S.M., c. W40, s.14.1(1)-(5).

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The Manitoba Hydro Act, C.C.S.M., c. H90.

under the authority of *The Public Utilities Board Act*.[2] Although the climate change implications of regulatory rate orders are not a matter of direct consideration for the PUB, it has at least recognized and commented upon future impacts of climate change on rates and GHG reduction benefits that can be achieved by programs designed to promote energy efficiency and reduced consumption.[3] Non-governmental organizations often participate in the rate review process as interveners and have historically raised a wide range of issues. In the future, they can be expected to also raise climate change concerns.

The Efficiency Manitoba Act received royal assent in 2017, was proclaimed in January 2019[4] and repealed *The Energy Savings Act. The Efficiency Manitoba Act* was developed to divest Manitoba Hydro of Demand Side Management (DSM) responsibilities and established Efficiency Manitoba as a stand-alone, non-share Crown corporation, dedicated to energy efficiency and conservation for the province of Manitoba. Part of Efficiency Manitoba's legislated mandate includes implementing and supporting various initiatives related to achieving efficiency, conservation and the reduction of greenhouse gas emissions in Manitoba (discussed further in §8:23 of this chapter).[5]

Efficiency Manitoba has been mandated to achieve, within the first 15-year period, a 22% reduction in electrical energy consumption (1.5% per year) and a 11.25% reduction in natural gas consumption (0.75% per year).[6] The Affordable Energy Fund under *The Energy Savings Act* (repealed) is to be continued under the administration of Efficiency Manitoba.[7]

8:13. Product and Building Standards

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The Public Utilities Board Act, C.C.S.M., c. P280.

3

See, for example, PUB comments on climate change in The Public Utilities Board, Report on the Needs for and Alternatives to (NFAT): Review of Manitoba Hydro's Preferred Development Plan (June 2014), available at http://www.pubmanitoba.ca/nfat/pdf/finalreport_pdp.pdf (accessed May 2022). Compare to discussion in Manitoba Hydro, Climate Change Report (March 2020), available at https://www.hydro.mb.ca/environment/pdf/climate_change_report_2020.pdf (accessed May 2022).

4

The Efficiency Manitoba Act, C.C.S.M., c. E15 (as amended). Note: not all provisions of the Act were in force upon proclamation.

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The Efficiency Manitoba Act, C.C.S.M., c. E15, ss. 4-6.

6

The Efficiency Manitoba Act, C.C.S.M., c. E115, s. 7.

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The Efficiency Manitoba Act, C.C.S.M., c. E115, s. 7, s. 37(2).

With Manitoba's cold winter climate and the reliance of most homes and businesses on natural gas heating improvements in building and building products, energy efficiency has a direct impact on GHG emissions in the province. Particularly in the summer, building energy efficiency improvements reduce electrical consumption. Although there may be no direct climate change improvement resulting from reduced summer consumption, since almost all of the electricity is generated by hydroelectric facilities, electricity savings allow for increased power exports that reduce reliance upon coal-burning generating stations in the importing jurisdictions.

The *2008 Manitoba Climate Change Act* (now repealed) made provision for building construction standards for greater energy and water efficiency to be implemented in 2010 under the authority of *The Buildings and Mobile Homes Act*[1] and local supplements to the National Building Code adopted under that legislation.

Pursuant to direction from *The 2008 Manitoba Climate Change Act* (repealed), in 2009, regulations establishing energy efficiency standards for residential furnaces and boilers[2] were created pursuant to *The Energy Act*.[3]

Changes to the Manitoba Building Code and the Manitoba Plumbing Code were enacted by regulation effective December 1, 2010.[4] The Building Code amendments introduced a number of new energy-efficiency standard changes for new home construction, including, among other things, standards for windows, the elimination of the use of pilot lights in gas fireplaces, an increase in the required level of attic insulation to R50, a minimum 94% fuel-efficiency rating for furnaces and the specification of a mid-efficient heat-recovery ventilator. Changes to the Manitoba Plumbing Code impose requirements for reduced maximum-flow rates in residential water devices such as toilets and shower heads and now allow the re-use of non-potable (grey) water for other domestic applications provided that it meets the proposed Canadian Standards

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1 *The Buildings and Mobile Homes Act*, C.C.S.M., c. B93.

2 *Energy Efficiency Standards for Replacement Forced Air Gas Furnaces and Small Boilers Regulation*, Man. Reg. 181/2009.

3 *The Energy Act*, C.C.S.M., c. E112.

4 *Manitoba Building Code, amendment*, Man. Reg 142/2010 (October 2, 2010); *Manitoba Plumbing Code, amendment*, Man. Reg. 143/2010 (October 4, 2010). See also 2014 regulations for energy efficiency standards in the construction of new large buildings. It is estimated the new standards related to insulation, lighting, heating, ventilation and HVAC systems will avoid 449,000 tonnes of future GHG emissions over a 20-year period when compared to the previous code provisions: *Building and Mobile Homes Act Amendment*, Man. Reg. 213/2013 (December 20, 2013). See also 2015 regulations requiring installation of heat recovery ventilators in ventilation systems and heat recovery units in drain systems in residential dwellings, both of which save energy by reducing the amount of energy required to heat intake fluid by preheating using exhaust fluid: *Manitoba Building Code, amendment,* Man. Reg. 52/2015 (April 27, 2015).

Association grey water quality standard.

Regulatory amendments under *The Energy Act* effective December 30, 2009[5] positioned Manitoba as having the highest energy-efficiency standards for home-heating energy efficiency. Furnaces are required to have a minimum efficiency of 92%, an improvement of 14% from the then-current federal minimum standard of 78%. Hot-water boilers are required to have a minimum efficiency of 82% and low-pressure steam boilers are required to have a minimum efficiency of 80%. This compares with the then-current federal standard of 80% for hot-water boilers and 75% for low-pressure steam boilers.

In April 2007, the Government of Manitoba adopted its own green building requirements for energy and environmental performance which apply to all buildings owned or operated by the government or a government agency and to any construction projects for which the Government of Manitoba provides capital funding.[6] A key goal under the policy is to reduce greenhouse gas emissions from Manitoba's building sector "by improving energy efficiency and expanding use of clean, renewable energy".[7] Accordingly, the policy requires all building projects covered by the policy to be constructed to LEED (Leadership in Energy and Efficiency Design Green Building Rating System) silver standard or better.[8]

Funding requirements for green buildings were introduced in *The 2008 Climate Change Act*, which was repealed in 2018 by *The 2018 Climate and Green Plan Act*.[9] *The Green Building Regulation*,[10] published in 2013 under the repealed Act, established design energy and reporting

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Energy Efficiency Standards for Replacement Forced Air Gas Furnaces and Small Boilers Regulation, Man. Reg. 181/2009 (November 12, 2009).

6

Manitoba, "The Green Building Policy for Government of Manitoba Funded Projects" (Manitoba Green Building Policy Interdepartmental Working Group, April 1, 2007, with addendum January 14, 2008), available at https://perma.cc/MUV9-FFCP (accessed May 2022); see also Manitoba, "Green Building Program, Building for a Greener Future" (December 2013) at s. 1.1, available at https://www.gov.mb.ca/finance/greenbuilding/pubs/gbpmanual.pdf (accessed May 2022).

7

Manitoba, "Green Building Program, Building for a Greener Future" (December 2013) at s. 1, available at https://www.gov.mb.ca/finance/greenbuilding/pubs/gbpmanual.pdf (accessed May 2022).

8

Manitoba, "Green Building Program, Building for a Greener Future" (December 2013) at s. 4.2, available at https://www.gov.mb.ca/finance/greenbuilding/pubs/gbpmanual.pdf (accessed May 2022).

9

The Climate and Green Plan Act, C.C.S.M., c. C134, s.13.

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requirements for certain government-funded owned or leased buildings.[11] At the time of writing, no further legislative updates were available.

8:14. Taxation

Manitoba has for the most part adopted a carrot-and-stick approach in taking modest steps to support GHG reduction through tax policy. In its 2008 budget, the Government of Manitoba announced a $10 per tonne emissions tax on carbon dioxide equivalent emissions from burning coal starting in July 2011, with a future increase to $30 per tonne to be announced on a schedule in a future budget.[1] At the same time the Province agreed to work with coal users to help make the transition to less environmentally damaging fuels.[2] This gesture was largely symbolic, since there were only three users of significant volumes of coal as fuel in Manitoba.[3] One of those users is Manitoba Hydro, which had already been mandated to switch over its last remaining thermal power plant from coal to alternative fuel.[4] Manitoba Hydro took Brandon station's local generator offline in 2018 and the second user, a paper mill, had since been permanently closed by its owner.

In 2013, Manitoba announced an outright coal heating ban effective January 1, 2014 with a grace period to July 1, 2017. A ban on using petroleum coke (petcoke) for heating ban was also introduced effective June 30, 2014 along with a corresponding petcoke emissions tax for industrial use.[5] In conjunction, the Province continues to promote and support development

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The Green Building Regulation, Man. Reg. 38/2013 (repealed November 18, 2018 on appeal of enabling legislation).

11 *The Green Building Regulation*, Man. Reg. 38/2013, ss. 3-7 (repealed).

1 Manitoba Department of Finance, Budget 2008: Budget Paper C: Taxation Adjustments at C11, available at https://perma.cc/5AX7-HTVE (accessed May 2022).

2 Manitoba Department of Finance, Budget 2008: Budget Paper C: Taxation Adjustments at C11, available at https://perma.cc/5AX7-HTVE (accessed January 2020); see also Manitoba, "Budget Targets Reliance on Coal--Province Introduces Emissions Tax on Coal; New Energy Conversion Program Part of Manitoba's Climate Change Action", News Release (April 9, 2008), available at https://perma.cc/5BK8-JEHW (accessed May 2022).

3 Tembec's pulp and paper mill in Powerview-Pine Falls; Graymont Lime plant in Faulkner, Manitoba; and Manitoba Hydro's power plant in Brandon.

4 *The Climate Change and Emissions Reductions Act*, C.C.S.M., c. C135, s.16 (repealed November 8, 2018).

5 *The Emissions Tax on Coal and Petroleum Coke Act*, C.C.S.M., c. E90. See also *The Retail*

of the biomass fuel market. For example, a portion of coal and petcoke tax revenues has been used to assist in the conversion to biomass fuel.

A Green Energy Manufacturing Tax Credit has been established as a component of the Manufacturing Investment Tax Credit and available tax credits in a given year may vary. Currently, the refundable tax credit is for up to 7.5% of the "adjusted cost" (125% of the manufacturer's cost) of geothermal heat pumps manufactured in Manitoba and sold for residential or commercial use in Manitoba before July 2023. An 8% refundable tax credit is also available on the adjusted cost of green energy transmission equipment sold before July 1, 2023.[6]

With respect to residential incentives, the Manitoba government has established a province-wide program which includes new geothermal heat pump systems and installation of new solar heating equipment (excluding equipment for heating swimming pools or equipment that distributes heated air or water in a building). For geothermal heat pump systems, the tax credit is 15% of the capital cost of equipment (excluding the cost of the heat pump) and 7.5% of the purchase price of the heat pump (which must qualify for the manufacturer's geothermal energy equipment tax credit). For solar heating equipment, the tax credit is 10% on eligible capital costs (including taxes and other associated operational costs).[7]

Further, a homeowner tax incentive to install a geothermal heating system exists through *The Municipal Assessment Act* which excludes from municipal assessments for real property tax purposes, the portion of a residential geothermal heating system that lies below the soil surface outside of the building.[8]

Business owners are also eligible for a 15% refundable tax credit for gasification equipment and biomass fuel energy equipment that is installed in Manitoba and used in a business.[9]

8:15. Transportation

The *2008 Climate Change Act* made some provision for changes in Manitoba transportation policy in response to the province's GHG emissions reduction targets.[1] Vehicle

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Sales Tax Act, C.C.S.M., c. R130, s. 3(1)(cc) (Manitoba Retail Sales Tax Exemption for Biomass).

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Manitoba, Manitoba Tax Assistance Office, "Green Energy Equipment Tax Credit", available at https://www.gov.mb.ca/finance/tao/green.html (accessed May 2022).

7

Manitoba, Manitoba Tax Assistance Office, "Green Energy Equipment Tax Credit", available at https://www.gov.mb.ca/finance/tao/green.html (accessed May 2022).

8

The Municipal Assessment Act, C.C.S.M., c. M226, s. 1(1)(j).

9

Manitoba, Manitoba Tax Assistance Office, "Green Energy Equipment Tax Credit", available at https://www.gov.mb.ca/finance/tao/green.html (accessed May 2022).

1

standards were developed by the Vehicle Standards Advisory Board for new vehicles, pursuant to specific considerations.[2] Appointees to the Advisory Board were to include representatives of distributors and dealers, representatives of consumers, and persons that the Minister considers to be knowledgeable about sustainable transportation policies and standards for vehicle emissions and efficiency adopted in other jurisdictions.[3] With *The 2018 Climate and Green Plan Act*, however, certain recommendations for transportation policies and standards will likely fall under the mandate of the Expert Advisory Council established under the Act.[4] In June 2021, the Expert Advisory Council made recommendations for the creation of a Green Transportation Strategy to reduce GHG emissions in the transportation sector both in the short and long term. A Green Transportation Strategy is expected to be implemented by the end of 2022 by the Manitoba government, prior to the start of the next Carbon Savings Account period from 2023 to 2027.[5]

The Highway Traffic Act[6] was amended by *The Traffic and Transportation Modernization Act*[7] which came into force March 1, 2019 and replaced various Acts and Regulations as part of a new regulatory framework. The amendments permit the adoption of regulations permitting zero-emission and other low-speed vehicles to be driven on highways.[8]

The Climate Change and Emissions Reductions Act, C.C.S.M., c. C135, ss. 13 and 14 (repealed November 8, 2018).

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The Climate Change and Emissions Reductions Act, C.C.S.M., c. C135, ss. 13 and 14 (repealed November 8, 2018).

3

The Climate Change and Emissions Reductions Act, C.C.S.M., c. C135, ss. 13 and 14 (repealed November 8, 2018).

4

The Climate and Green Plan Act, C.C.S.M., c. C134, ss. 7-8.

5

Expert Advisory Council, Report of the Expert Advisory Council to the Minister of Conservation & Climate: Recommendations for a Green Transportation Strategy for Manitoba (June 2021) at p. 24, available at https://manitoba.ca/asset_library/en/eac/green_transportation.pdf (accessed May 2022).

6

The Highway Traffic Act, C.C.S.M. c. H60.

7

The Traffic and Transportation Modernization Act, S.M. 2018, c.10 at Schedule B. This Act also replaced *The Highways and Transportation Act*, C.C.S.M., c. H40 and *The Highways Protection Act*, C.C.S.M., c. H50 with *The Transportation Infrastructure Act*, C.C.S.M., c. T14.

8

The Highway Traffic Act, C.C.S.M. c. H60, s. 319(9).

Current vehicle standards preclude many existing forms of low-emission or low-speed vehicles from being registered for use on public roadways, including city streets.

8:16. Provincial Emergency Measures Legislation

The Emergency Measures Act[1] is the framework for Manitoba's emergency response system. The Act sets out the duties and responsibilities of public sector agencies during an emergency, the requirements for emergency plans by municipalities and others, the range and availability of government emergency powers to deal with an emergency, and the provision of disaster relief by the province. In response to the COVID-19 pandemic, government emergency powers were expanded to include the creation of temporary emergency orders and temporary suspensions of statutes and regulations.[2]

The Act continues the Emergency Measures Organization ("EMO").[3] EMO traces its history back to 1959, when its predecessor was established in response to the threat of nuclear attack during the Cold War era. By 1996 it had evolved to amalgamate with the Manitoba Disaster Assistance Board to form the Manitoba Emergency Management Organization, which is continued under the Act as the EMO. EMO broadened its scope of operations to include all phases of disaster management--from preparedness to managing, directing and coordinating response of all departments to an emergency or disaster.[4] EMO develops and administers the Manitoba Emergency Response Plan.[5] It is also a forum for public education and training.[6]

8:17. Planning Legislation

The Planning Act[1] governs land use and planning in the province, except within the City

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1 *The Emergency Measures Act*, C.C.S.M. c. E80.

2 *The Emergency Measures Amendment Act*, S.M. 2020, c. 6 (April 15, 2020).

3 *The Emergency Measures Act*, C.C.S.M. c. E80, s. 2(1).

4 *The Emergency Measures Act*, C.C.S.M. c. E80, s. 2.1.

5 *The Emergency Measures Act*, C.C.S.M. c. E80, s. 2.2. See also *Local Authorities Emergency Planning and Preparedness Regulation*, Man. Reg. 159/2016. See also Manitoba Emergency Plan, v. 2.3 (April, 2018), available at https://www.gov.mb.ca/emo/pdfs/MEP.pdf (accessed May 2022).

6 Manitoba EMO Emergency Management Training, available at http://manitobaemotraining.ca (accessed May 2022).

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of Winnipeg, where it is governed by the *City of Winnipeg Charter*.[2] Winnipeg is accorded its own similar legislation, as its population makes up approximately 60% of the population of Manitoba.[3] Both Acts establish a framework for municipal development plans and, in the case of municipalities outside the City of Winnipeg, regional planning through the use of planning districts.

All municipalities are required to establish development plans setting out a long-term planning framework for the municipality and to then periodically review those plans under a process mandated by legislation.[4] Development plans form the basic planning documents for the municipalities and all more specific planning decisions on the part of a municipality, such as the enactment of zoning by-laws, zoning variances and conditional use orders, must be consistent with the development plan of the municipality or district of which the municipality is a part. A development plan must set out the plans and policies of the planning district or municipality respecting its purposes and its physical, social, environmental and economic objectives and, through maps, statements and objectives, direct sustainable land use and development in the planning district or municipality.[5] Municipalities other than Winnipeg must also establish a livestock operation policy as part of the development plan.

Municipal development plans are subject to review and approval by the Province and must be consistent with the *Provincial Planning Regulation*,[6] established by regulation under *The Planning Act*.

The *Provincial Planning Regulation* includes specific reference to climate change and GHGs. As stated in the "Introduction" to "Why Use Provincial Land Use Policies" (attached as a Schedule to the Act):

> In moving toward the sustainable development of Manitoba, planning must address a number of strategic priorities concurrently, such as sustainable infrastructure, clean energy, public health and safety, climate change mitigation and adaptation, economic diversification and competitiveness, housing affordability, resource conservation and water quality protection.
>
> The Province recognizes that the manner in which land and resources are used has direct impact on these priorities. For example, how communities are planned and designed influences how people live, their level of resource consumption and their corresponding pollution production, such as greenhouse gas emissions.

The Planning Act, C.C.S.M., c. P80.

2

The City of Winnipeg Charter, S.M. 2002, c. 39.

3

City of Winnipeg, "Winnipeg Population Estimates and Projections" (June 2022), available at https://winnipeg.ca/cao/pdfs/PopulationEstimates2021.pdf (accessed May 2022).

4

The Planning Act, C.C.S.M., c. P80, Part 4.

5

The Planning Act, C.C.S.M., c. P80, Part 4, s. 42.

6

Provincial Planning Regulation, Man. Reg. 81/2011 (as amended).

> Because of this interdependence, the Province is interested in how land use planning and development occurs in Manitoba.

The introduction goes on to describe how this interest is expressed in the Provincial Land Use Policies (the "PLUPs") based on the principles of sound land use planning. Included in the list of nine principles are: "Mitigation and adaptation"--the ability to anticipate, mitigate and adapt to changes including shifts in ecology and climatic norms; as well as "Integration" which requires decision makers to consider how land use decisions influence other plans, programmes and initiatives including change action plans. And as further stated as a policy area, under the heading "General Development":[7]

> Manitobans live in a rapidly changing environment. For example, more extreme weather events and departures from climate norms now represent a significant risk to Manitoba. Our communities, ecosystems and economy are vulnerable to the impacts of climate variability and shifts in bioclimate and land use decisions should recognize these risks and strive to reduce vulnerability of communities and make them more resilient.
>
> It is important to the Province that Manitoba's communities are environmentally, socially and economically resilient. From a land use perspective, this means fostering planning and development practices that support climate change mitigation and adaptation, promote healthy and fiscally sustainable communities, encourage diversity and protect cultural integrity.

IV. Climate Change Policy Development

8:18. Generally

The development of Manitoba's climate change strategy began with the work of the Manitoba Climate Change Task Force established in early 2001 by the Province of Manitoba and supported by the International Institute for Sustainable Development.[1] In September 2001, the Task Force published the *Climate Change Task Force Report*.[2] The Report addressed the implications of climate change for Manitobans and contained a number of recommendations, including:

> • creating a provincial energy policy focused on the development of renewable and alternative energy options and maximizing the energy sector's potential as an economic development tool with particular focus on hydro, biofuels and hydrogen;
>
> • reviewing *The Manitoba Hydro Act* to determine how Manitoba Hydro should participate in Manitoba's energy future;

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Provincial Planning Regulation, Man. Reg. 81/2011, Schedule, Part 3.

1

For further discussion see International Institute for Sustainable Development, "Climate Change Impacts in Manitoba" (March 2007), available at https://www.cecmanitoba.ca/cecm.archive/pubs/commission%20reports/commissioned-reports-2001-2002-manitoba_climate_change_investing_future.pdf (accessed May 2022).

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Manitoba Climate Change Task Force, Manitoba and Climate Change: Investing In Our Future (September 2001), available at http://www.cecmanitoba.ca/doc/commission_reports/Commissioned-Reports-2001-2002-Manitoba_Climate_Change_Investing_Future.pdf (accessed May 2022).

- developing grants and incentives to encourage energy efficiency to build on Manitoba Hydro's Power Smart Program;[3]
- defining components to be addressed in the establishment of a continental energy policy with the United States and Mexico;
- conducting research and analysis of the effect of climate change on the Prairies;
- establishing a northern strategy to address critical northern issues such as the availability of winter roads and the shipping season for the Port of Churchill;
- adopting new measures for alterative fuels and funding for transit; and
- initiating public education and outreach.

The *Climate Change Task Force Report* led to the development of Manitoba's 2002 policy document, *Kyoto and Beyond--A Plan of Action to Meet and Exceed Manitoba's Kyoto Targets*[4] which resulted in *Beyond Kyoto: Manitoba's Green Future* ("*2008 Action Plan*").[5] Notwithstanding the bold title, Manitoba's climate change strategy recognized and continues to recognize that Manitoba has a relatively small carbon footprint both as a province and on a per capita basis, especially considering Manitoba's cold winter and warm summer climate, its number of remote communities and its reasonably large rural population. Manitoba's climate change policy focused on economic development in the form of potential spin-offs, such as the development of additional hydroelectric generating facilities which would allow for the export of relatively clean power to other jurisdictions.

For example, Manitoba Hydro's former Power Smart Program was previously aimed at reducing demand for electricity by residential, commercial and industrial users of electricity in Manitoba. The original motivation for seeking these reductions in consumption was to increase the availability of Manitoba-generated electric power for export into the northern United States marketplace. With the advent of climate change as an issue, however, the Power Smart Program allowed Manitoba Hydro to export surplus power to displace power that would otherwise have been generated from coal-burning facilities in the United States. Manitoba has exported an average of 7283 GW/h of hydroelectricity to the United States annually, displacing approximately 4.9MT of CO2e.[6]

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Power Smart was an energy conservation strategy operated by Manitoba Hydro designed to assist consumers with improving energy efficiency via awareness-raising initiatives.

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Manitoba, Province of Manitoba Climate Change Action Plan: Kyoto and Beyond--A Plan of Action to Meet and Exceed Manitoba's Kyoto Targets (Government of Manitoba Publications, 2002), available at https://perma.cc/7QMZ-GNE5 (accessed May 2022).

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Manitoba Science, Technology, Energy and Mines, Climate and Green Initiatives Branch, Beyond Kyoto: Manitoba's Green Future--Next Steps: 2008 Action on Climate Change (2008).

6

Manitoba, Manitoba's Climate Change and Green Economy Action Plan (December 2015), at p. 8, available at https://perma.cc/M8QX-NFUW (accessed May 2022).

In 2016, Manitoba Hydro and SaskPower agreed to a 100 MW electrical power sales agreement which may potentially reduce Saskatchewan's annual electricity CO2 production from electricity generation by 200,000 - 400,000 tonnes.[7] More recently, the Government of Canada and the Province of Manitoba together invested more than $60 million in the construction of the Birtle transmission line[8] following an agreement to export an additional 215 MW of power to Saskatchewan.[9] The new transmission line could potentially reduce Saskatchewan's annual emissions by an additional 3 MT.[10]

The *2008 Action Plan* originally estimated that Manitoba could achieve GHG reductions of up to 18% below 1990 levels by approximately 2010, and reductions of up to 23% by 2012, surpassing Manitoba's Kyoto equivalent targets.[11] Initiatives under early iterations of the *2008 Action Plan* focused on hydro, ethanol and energy efficiency. Aware that the aggressive "Beyond Kyoto" targets were not likely to be met, the Government of Manitoba updated the *2008 Action Plan*, setting a short-term target consistent with Canada's Kyoto commitment: to reduce GHG emissions from 20 Mt to approximately 17.5 Mt or 6% below 1990 levels by 2012.[12] The target

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7 Manitoba Sustainable Development, A Made-in-Manitoba Climate and Green Plan (2017) at p.11, available at https://gov.mb.ca/asset_library/en/climatechange/climategreenplandiscussionpaper.pdf (accessed May 2022).

8 Manitoba, "Transmission Line to Reduce Greenhouse-Gas Emissions and Create More Reliable Power Supply", News Release (March 2, 2020), available at https://news.gov.mb.ca/news/index.html?item=46897&posted=2020-03-02 (accessed May 2022).

9 Manitoba Hydro, "New Birtle transmission line starts sending power to Saskatchewan" (May 21, 2021), available at https://www.hydro.mb.ca/articles/2021/05/new_birtle_transmission_line_starts_sending_power_to_saskatchewan/ (accessed May 2022).

10 Manitoba Sustainable Development, A Made-in-Manitoba Climate and Green Plan (2017) at p.11, available at https://gov.mb.ca/asset_library/en/climatechange/climategreenplandiscussionpaper.pdf (accessed May 2022).

11 Manitoba, Manitoba's Climate Change and Green Economy Action Plan (December 2015), at p. 10, available at https://perma.cc/M8QX-NFUW (accessed May 2022).

12 Office of the Auditor General Manitoba, "Report to the Legislative Assembly: Performance Audits" (December 2010) at Chapter 1, available at https://www.cag/mb/ca/audit-

represented a reduction of approximately 25% from projected emissions under a business-as-usual scenario. The Government introduced more than 60 initiatives to meet that commitment, including legislatively mandating the 6% emissions reduction target in *The 2008 Climate Change Act.* Manitoba was the first jurisdiction in Canada to adopt the Kyoto target. By 2012, however, the 6% emissions reduction target had not been met.

From October 2013 to January 2015, the International Institute for Sustainable Development led consultations on climate change and the green economy on behalf of the government of Manitoba. In December 2015, Manitoba released an updated action plan which adopted many of the recommendations that had been made during the consultations.[13]

Manitoba's *Climate Change and Green Economy Action Plan* ("*2015 Action Plan*") set ambitious new emissions targets and detailed a number of projects, programs, and legislative changes aimed at meeting those new emissions targets. Under the *2015 Action Plan*, the Government of Manitoba committed to reducing GHG emissions by one third over 2005 levels by 2030, one half over 2005 levels by 2050 and to be carbon neutral by 2080.[14] Manitoba's emissions were approximately 20.7 Mt in 2005 and 21.4 Mt in 2013. To meet the 2030 goal under the 2015 Action Plan would require 7.6 Mt of GHG reductions, "while absorbing any new emissions from population and economic growth".[15] Projects, programs, and legislative changes aimed at meeting those new emissions targets, included:

- developing a new demand-side management entity to oversee and develop conservation programs to ensure new legislated targets for electricity and natural gas savings are met;
- undertaking a new five-year $5 million Climate Action Fund in partnership with First Nations communities and invested across sectors;
- promoting investment opportunities in Manitoba's clean energy economy;
- emissions reduction initiatives and promoting a green economy across sectors (e.g. transportation, buildings and infrastructure, agriculture and rural development);
- introducing new environmental rights legislation and strengthening *The Sustainable Development Act* and *The Environment Act*;
- building and enhancing resilience; and
- exploring and implementing a cap and trade program and carbon pricing mechanisms.

On October 25, 2017 Manitoba's Office of the Auditor General released the report,

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reports/report/report-to-the-legislative-assembly-performance-audits/ (accessed May 2022).

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Manitoba, Manitoba's Climate Change and Green Economy Action Plan (December 2015) available at https://perma.cc/M8QX-NFUW (accessed May 2022).

14

Manitoba, Manitoba's Climate Change and Green Economy Action Plan (December 2015), at pp. 3 and 6, available at https://perma.cc/M8QX-NFUW (accessed May 2022).

15

Manitoba, Manitoba's Climate Change and Green Economy Action Plan (December 2015), at p.6, available at https://perma.cc/M8QX-NFUW (accessed May 2022).

Managing Climate Change, a follow-up audit to an earlier 2010 report.[16] The audit found that despite past government efforts[17] to reduce GHG emissions to the legislated target (6% below the 1990 level by 2012), there had been "little change in Manitoba greenhouse gas emissions over the past decade".[18] The Auditor General described *inter alia* how gaps and weaknesses in management processes resulted in inadequate plans for updating and setting targets, monitoring and reporting on progress, assessing risks, and adaptation. Recommendations included: reviewing and updating GHG emissions reduction plan at least every three years; using scientific and economic analyses to help set targets; annual reporting on progress and any significant risks to Manitoba as a result of climate change; and developing a clearly defined adaption plan.[19]

Following the Auditor General's report, the Manitoba Government announced that it had already commenced development of a new *Made-in-Manitoba Climate and Green Plan* ("*Made-in-Manitoba Plan*").[20] The strategic approach, as described in the government's consultation document, "is to lead and innovate in sustainable development" supported by the four "pillars" of climate, jobs, water and nature, under which are 16 "keystones" for priority action.[21]

16

Office of the Auditor General, Manitoba, Managing Climate Change (a follow-up to our December 2010 audit) (October 2017), available at https://www.oag.mb.ca/audit-reports/report/managing-climate-change-a-follow-up-to-our-december-2010-audit/ (accessed May 2022).

17

For examples of departmental climate change initiatives taken during this time, see Manitoba Sustainable Development Annual Reports: 2014-2015; 2015-2016 and 2016-2017, available at https://www.manitoba.ca/sd/about/annual_reports/index.html (accessed May 2022).

18

Office of the Auditor General, Manitoba, Managing Climate Change (a follow-up to our December 2010 audit) (October 2017), at pp. 3 and 8, available at https://www.oag.mb.ca/audit-reports/report/managing-climate-change-a-follow-up-to-our-december-2010-audit/ (accessed May 2022).

19

Office of the Auditor General, Manitoba, Managing Climate Change (a follow-up to our December 2010 audit) (October 2017), at p. 29, available at https://www.oag.mb.ca/audit-reports/report/managing-climate-change-a-follow-up-to-our-december-2010-audit/ (accessed May 2022).

20

Manitoba Sustainable Development, A Made-in-Manitoba Climate and Green Plan (2017), available at https://www.gov.mb.ca/asset_library/en/climatechange/climategreenplandiscussionpaper.pdf (accessed May 2022).

21

Manitoba Sustainable Development, A Made-in-Manitoba Climate and Green Plan (2017), at

Since the change in government in 2016 from NDP to Conservative, the Manitoba government expressed unequivocal opposition to the imposition of a federal carbon tax. Manitoba has taken the position that it should be given specific consideration by reason that over 98% of energy being consumed in Manitoba is generated through hydro-electric power and its early efforts in climate change reductions efforts including significant monetary investment in building its clean energy system.

In October 2017, as part of developing a Made-in-Manitoba approach, the Manitoba government commissioned and obtained a legal opinion on the authority of Canada to enact carbon tax legislation that would impose a federal carbon tax if Manitoba failed to impose its own provincial tax in compliance with federal targets--the "backstop" feature. The opinion concluded that the federal government had authority to impose a carbon tax pursuant to its taxation power under s. 91(3) of the Constitution. Additionally, the scheme's "backstop" feature was consistent with the concept of "cooperative federalism".[22] Manitoba, within its Made-in-Manitoba Plan, was proposing a flat carbon price of $25 per tonne on carbon for the years 2018-2022--in contrast to Federal government's standard (at that time) of a carbon levy of $10 per tonne in 2018, rising by $10 per tonne each year to $50 per tonne in 2022.[23] According to the Manitoba government, the *Made-in-Manitoba* carbon pricing is "better for the environment" (as it would achieve double the emissions reductions than under the federal plan) and "better for the economy" (Manitoba taxpayers would pay approximately $260 million less than under the federal plan).[24]

In February 2018, Manitoba joined the *Pan-Canadian Framework on Clean Growth*

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p. 3, available at https://www.gov.mb.ca/asset_library/en/climatechange/climategreenplandiscussionpaper.pdf (accessed May 2022).

22

Bryan P. Schwartz, "Legal Opinion on the Constitutionality of the Federal Carbon Pricing Benchmark & Backstop Proposals" (October 6. 2017), available at https://manitoba.ca/asset_library/en/climatechange/federal_carbon_pricing_benchmark_backstop_proposals.pdf (accessed May 2022).

23

Manitoba Sustainable Development, A Made-in-Manitoba Climate and Green Plan (2017), at pp. 14-19, available at https://www.gov.mb.ca/asset_library/en/climatechange/climategreenplandiscussionpaper.pdf (accessed May 2022). As of April 1, 2019, the federal fuel charge rates reflect a carbon pollution price of $20 per tonne of carbon dioxide equivalent (CO2e) in 2019, rising by $10 per tonne annually to $50 per tonne in 2022.

24

Manitoba Sustainable Development, A Made-in-Manitoba Climate and Green Plan (2017), at pp. 16-17, available at https://www.gov.mb.ca/asset_library/en/climatechange/climategreenplandiscussionpaper.pdf (accessed May 2022).

and Climate Change, a pan-Canadian cooperative approach to addressing carbon pricing, other climate change measures and clean economic growth. The Manitoba government submitted its *Made-in-Manitoba* proposed pricing plan to the Federal government for its approval. However, the Federal government rejected the plan and imposed its carbon tax scheme on Manitoba. The Manitoba government subsequently took steps to challenge the federal carbon tax in court.[25]

By October 2021, Manitoba had lost its challenge against the federal government. According to the Federal Court, Manitoba's assertions of greater emissions reductions were inaccurate and Manitoba's plan was "76,000 tonnes of CO2 [equivalent] *less* effective in 2022" than a price in accordance with the federal benchmark.[26] Manitoba did not pursue an appeal of the decision.[27]

Carbon pricing issue aside, the Manitoba government continued with implementation of various aspects of its *Made-in-Manitoba Plan.* This includes introduction of *The Climate and Green Plan Act* ("*The 2018 Climate and Green Plan Act*") which went into effect November 8, 2018.[28] *The 2018 Climate and Green Plan Act, inter alia*, repealed both *The 2008 Climate Change Act* and *The Sustainable Development Act*.[29]

In December 2020 and building on the 2016 *Pan-Canadian Framework,* the Federal government introduced its strengthened climate plan, *A Healthy Environment and a Healthy Economy*. Within this plan, the Federal government described its strategy for "Climate Smart Agriculture, which included setting a national emission reduction target of 30% below 2020 levels from fertilizers,[30] a matter of particular interest to Manitoba. And as previously discussed

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See Manitoba, "Canada Welcomes Manitoba to the Pan-Canadian Plan for Clean Growth and Climate Action", News Release (February 23, 2018). See also "Manitoba to Challenge Ottawa's Carbon Tax in Court", News Release (April 3, 2019).

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Manitoba v. Canada (Attorney General), 2021 CarswellNat 4640, 2021 CarswellNat 4641, 2021 FC 1115, 44 C.E.L.R. (4th) 273, 2021 D.T.C. 5118 (F.C.) at para 52.

27

Manitoba, "Manitoba Confirms No Appeal in Carbon Tax Case", News Release (November 17, 2021), available at https://news.gov.mb.ca/news/index.html?item=52739&posted=2021-11-17 (accessed May 2022).

28

The Climate and Green Plan Act, C.C.S.M., c. C134.

29

The Climate and Green Plan Act, C.C.S.M., c. C134, ss. 13(a) and (b).

30

Environment and Climate Change Canada, A Healthy Environment and a Healthy Economy (2020), at p. 45, available at https://www.canada.ca/en/services/environment/weather/climatechange/climate-plan/climate-plan-overview/healthy-environment-healthy-economy.html (accessed May 2022).

in §8:3 of this chapter, with the passing of the June 2021 *Canadian Net-Zero Emissions Accountability Act*, Canada enshrined in legislation, *inter alia*, a national emissions reduction target of 40-45% below 2005 levels by 2030 and commitment to achieve net-zero greenhouse gas emissions in Canada by 2050.[31]

V. Specific Legal and Policy Response

A. Mitigation

8:19. Major Initiatives

Manitoba's initial phase of climate change initiatives is set out in the planning and policy document *Beyond Kyoto: Manitoba's Green Future* (the "*2008 Action Plan*").[1] Under the *2008 Action Plan*, the Government of Manitoba set an aggressive emissions reduction target to reduce the province's GHG emissions by 3 Mt, or 6% below 1990 levels by 2012. Accordingly, the plan identified a reduction from 20 Mt to 17 Mt, with all reduction activities being undertaken within Manitoba. The Manitoba government claimed this was the "most aggressive legislative target" of any jurisdiction in North America[2] and represented a reduction of approximately 25% from projected emissions under a business-as-usual scenario. The *2008 Action Plan* included approximately 60 initiatives--some legislative, some policy and some government practice--to help to achieve the reduction targets. Many of these initiatives were included in *The 2008 Climate Change Act* and various consequential amendments to other legislation (some of which have already been discussed). *The 2008 Climate Change Act* came into force on June 12, 2008.

Manitoba's second phase of climate change initiatives was set out in Manitoba's *Climate Change and Green Economy Action Plan* (the "*2015 Action Plan*"), with *The 2008 Climate Change Act* still in effect. Under the *2015 Action Plan*, the Manitoba government committed to reducing GHG emissions by one third over 2005 levels by 2030 and one half over 2005 levels by 2050.[3] Reducing emissions by one third over 2005 levels by 2030 was estimated to require "7.6 MT of GHG reductions, while absorbing any new emissions from population and economic

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31 *Canadian Net-Zero Emissions Accountability Act*, S.C. 2021, c. 22, at ss. 1.1(2), 4 and 6.

1 Manitoba Science, Technology, Energy and Mines, Beyond Kyoto: Manitoba's Green Future--Next Steps: 2008 Action on Climate Change (2008).

2 Manitoba Science, Technology, Energy and Mines, Beyond Kyoto: Manitoba's Green Future--Next Steps: 2008 Action on Climate Change (2008).

3 Manitoba, Manitoba's Climate Change and Green Economy Action Plan (December 2015), at p. 8, available at https://perma.cc/M8QX-NFUW (accessed May 2022).

growth".[4] In 2015, Manitoba also became the first province to sign the Blue Dot Declaration, which formally recognizes the right to a healthy environment.[5]

GHG emission reductions targets under the 2015 Action Plan were not ultimately met and following the change in government in 2016, Manitoba entered into a third phase of climate change initiatives. Following public consultations in 2017, Manitoba launched its *Made-in-Manitoba Plan*, which led to new legislation, *The 2018 Climate and Green Plan Act*.

The goal of the *Made-in-Manitoba Plan* is to establish Manitoba as Canada's "cleanest, greenest and most climate resilient province".[6] To achieve this vision, the government describes that a "whole-of-government" approach in the development of policies, programs and measures is needed with actions to be taken across all government departments.[7] The *Made-in-Manitoba Plan* consultation document describes the plan's strategic framework as grounded in a knowledge and evidence-based approach and possessing the following attributes: *comprehensive* (covers the full range of sustainable development activities and approaches; *integrated* (brings together environment and economy through sustainable development leadership and innovation); *focused* (identifies top priorities); *dynamic* (sets short, medium, longer-term actions with flexibility to add more measures, resources permitting); and *practical* (clear and realistic).[8]

4

Manitoba, Manitoba's Climate Change and Green Economy Action Plan (December 2015), at p. 6, available at https://perma.cc/M8QX-NFUW (accessed May 2022). See also Manitoba, "Manitoba Introduces Comprehensive Plan to Address Climate Change, Create Green Jobs" (December 3, 2015), available at https://news.gov.mb.ca/news/index.html?item=36950 (accessed May 2022).

5

Manitoba, Manitoba's Climate Change and Green Economy Action Plan (December 2015), at p. 19, available at https://perma.cc/M8QX-NFUW (accessed May 2022). Although commitments were made to advance environmental rights within the Province, proposed legislation did not proceed beyond first reading and no further action has been taken.

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Manitoba Sustainable Development, A Made-in-Manitoba Climate and Green Plan (2017), at p. 3, available at https://www.gov.mb.ca/asset_library/en/climatechange/climategreenplandiscussionpaper.pdf (accessed May 2022).

7

Manitoba Sustainable Development, Annual Report 2018-2019 (2019) at p. 92, available at https://www.gov.mb.ca/sd/pubs/annual-reports/annual_report_2018_19.pdf (accessed May 2022).

8

Manitoba Sustainable Development, A Made-in-Manitoba Climate and Green Plan (2017) at p.2, available at https://gov.mb.ca/asset_library/en/climatechange/climategreenplandiscussionpaper.pdf (accessed May 2022).

The *Made-in-Manitoba Plan* vision is supported by four sustainable development-based "pillars", each of which have four "keystones" or areas for priority action:

Pillar 1: *Climate* (emissions reductions, investment in clean energy and adaptation):

• Keystones: Clean Energy; Carbon Pricing; Sector Emissions Reductions; Adaptation.

Pillar 2: *Jobs* (sustainable development focus for job creation and economic growth):

• Keystones: Innovation and Cleantech; Financing and Investment; Skills and Training; Green Infrastructure.

Pillar 3: *Water* (water quality and quantity):

• Keystones: Wetlands and Watersheds; Agriculture and Land Use; Flood and Drought; Water Quality.

Pillar 4: *Nature* (respect nature's majesty and vulnerability, preserving the natural environment while growing through economic development):

• Keystones: Parks and Protected Areas; Wild Species and Habitat; Forests and Natural Areas; Conservation.

Each keystone in turn points to expected results. For example, under the Climate pillar and keystones, expected results include: more clean energy; emissions reductions due to carbon pricing; overall emissions reductions; and increased climate resiliency.[9] Under the Jobs pillar and keystones, expected results include: "clean technology sector growth; increased private sector investment in the green economy; increase in green economy jobs; more green infrastructure projects".[10]

Implementation of the envisioned *Made-in-Manitoba* framework is described as resting on the following four "foundations": knowledge and foresight; education and awareness; planning and adaptations; and local and indigenous knowledge.[11]

The Climate and Green Plan Implementation Office ("CGPIO") of the Department of Sustainable Development (now the Department of Environment, Climate and Parks) was established in January 2019 to "ensure delivery" of the *Made-in-Manitoba Plan* within the four

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Manitoba, Made-in-Manitoba Climate and Green Plan, What it Means for Sustainable Development, available at https://www.gov.mb.ca/asset_library/en/climatechange/pdf/sustainabledevelopment.pdf (accessed May 2022).

10

Manitoba, Made-in-Manitoba Climate and Green Plan, What it Means for Sustainable Development, available at https://www.gov.mb.ca/asset_library/en/climatechange/pdf/sustainabledevelopment.pdf (accessed May 2022).

11

Manitoba Sustainable Development, A Made-in-Manitoba Climate and Green Plan (2017) at p.4, available at https://gov.mb.ca/asset_library/en/climatechange/climategreenplandiscussionpaper.pdf (accessed May 2022).

pillars of the plan.[12] "The office reports centrally to a management committee of the Clerk of the Executive Council".[13] The office used existing staff and financial resources of the department and integrated the former Climate Change and Air Quality branch and the Energy branch of Sustainable Development as well as other departments.[14] The structure of the CGPIO is aimed at eliminating a silo approach and duplication and establishes and maintains the new "whole-of-government" vision required to advance a timely, comprehensive and integrated *Made-in-Manitoba Plan.* The office provided leadership on the development of *The 2018 Climate and Green Plan Act* and supports the work of the Expert Advisory Council established under the Act.[15] See §8:21 of this chapter for further discussion of the CGPIO.

As earlier described in §8:18 of this chapter, the *Made-in-Manitoba Plan* proposed a "Prairie Price"--a low, flat, carbon price of $25 per tonne for the years 2018-2022.[16] The Federal government, finding that Manitoba's proposal did not align with federal benchmarks, implemented its carbon pricing system in the province commencing April 1, 2019.[17] Manitoba challenged the federal government and in particular, the federal government's approach to

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Manitoba Sustainable Development, Annual Report 2018-2019 (2019) at pp. 6 and 92-93, available at https://www.gov.mb.ca/sd/pubs/annual-reports/annual_report_2018_19.pdf (accessed May 2022).

13

Manitoba Sustainable Development, Annual Report 2018-2019 (2019) at pp. 6 and 92-93, available at https://www.gov.mb.ca/sd/pubs/annual-reports/annual_report_2018_19.pdf (accessed May 2022).

14

Manitoba Sustainable Development, Annual Report 2018-2019 (2019) at pp. 6 and 92-93, available at https://www.gov.mb.ca/sd/pubs/annual-reports/annual_report_2018_19.pdf (accessed May 2022).

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Manitoba Sustainable Development, Annual Report 2018-2019 (2019), available at https://www.gov.mb.ca/sd/pubs/annual-reports/annual_report_2018_19.pdf (accessed May 2022).

16

Manitoba Sustainable Development, A Made-in-Manitoba Climate and Green Plan (2017) at p. 15, available at https://gov.mb.ca/asset_library/en/climatechange/climategreenplandiscussionpaper.pdf (accessed May 2022).

17

In 2019 the Federal fuel charge rate reflected a carbon pollution price of $20 per tonne of carbon dioxide equivalent (CO2e), rising by $10 per tonne annually to $50 per tonne in 2022. See *Greenhouse Gas Pollution Pricing Act*, S.C. 2018, c. 12.

"measuring the stringency of Manitoba's plan and unequal treatment relative to other provincial plans".[18] The Federal Court decided in favour of the federal government in October 2021 and Manitoba did not pursue an appeal of the decision.[19] Accordingly, the *Made-in-Manitoba Plan* continues to evolve.

In June 2019, on the advice and recommendations of the Expert Advisory Council[20] as required under *The 2018 Climate and Green Plan Act*, the Minister of Sustainable Development set Manitoba's GHG emissions reduction goal for the 2018 to 2022 period "at 1 Mt of CO2e relative to a forecast of the total greenhouse gas emissions that would have occurred in that period" if no additional GHG emissions reduction measures had been implemented in that period.[21] The 1 Mt reduction goal is a cumulative reduction target amount over the five-year period.[22]

With the establishment of the GHG emissions reduction goal, Manitoba announced the establishment of a "carbon savings account" for 2018 to 2022. Manitoba is the first jurisdiction in North America to establish an economy-wide carbon savings account.[23] The carbon savings

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See Manitoba, "Manitoba Confirms No Appeal in Carbon Tax Case", News Release (November 17, 2021), available at https://news.gov.mb.ca/news/index.html?item=52739&posted=2021-11-17 (accessed May 2022).

19

Manitoba v. Canada (Attorney General), 2021 CarswellNat 4640, 2021 CarswellNat 4641, 2021 FC 1115, 44 C.E.L.R. (4th) 273, 2021 D.T.C. 5118 (F.C.).

20

For discussion of the principles taken into account by the Expert Advisory Council to guide its advice and recommendations on the carbon savings account and the GHG emissions reduction goal see Report of the Expert Advisory Council to the Minister of Sustainable Development: A Carbon Savings Account for Manitoba, June 2019 (2019) at p. 7, available at https://www.gov.mb.ca/asset_library/en/eac/eac_carbon_savings_report2019.pdf (accessed May 2022).

21

Minister of Sustainable Development, Policy: Made-in-Manitoba Climate and Green Plan, Manitoba's Greenhouse Gas Emissions Reduction Goal for 2018 to 2022 (June 2019), available at https://www.manitoba.ca/asset_library/en/eac/sd_response.pdf (accessed May 2022).

22

Minister of Sustainable Development, Policy: Made-in-Manitoba Climate and Green Plan, Manitoba's Greenhouse Gas Emissions Reduction Goal for 2018 to 2022 (June 2019), available at https://www.manitoba.ca/asset_library/en/eac/sd_response.pdf (accessed May 2022).

23

Minister of Sustainable Development, Policy: Made-in-Manitoba Climate and Green Plan, Manitoba's Greenhouse Gas Emissions Reduction Goal for 2018 to 2022 (June 2019), available

account is “Manitoba's way” to “drive ongoing emissions reductions”.[24] As stated by the Expert Advisory Council,[25]

> Simply put, it is the sum of all emission reductions over a fiveyear period on a cumulative basis. This is tracked against a set cumulative emissions reductions goal for those five years. The emissions reductions are the “carbon savings”; the tracking against that goal is the “account”.
>
> Cumulative emissions reductions is the best method to measure carbon emissions reductions in Manitoba, given the province's clean electricity grid and the nature of the province's emissions profile.

8:20. *The Climate and Green Plan Act*

The climate “pillar” policy initiatives and priority actions along with support for aspects of the other pillars in the *Made-in-Manitoba Plan* were put into action with the enactment of *The Climate and Green Plan Act*[1] on November 8, 2018 (“*The 2018 Climate and Green Plan Act*”).

Purpose of *The 2018 Climate and Green Plan Act*

The preamble to the Act first recognizes that “climate change is the result of greenhouse gas emissions” primarily caused by “the use of carbon-based fuels and processes that release carbon” creating a wide range of risks and challenges locally and globally.[2] On that underpinning, the preamble goes on to state that a “move to a low carbon economy is critical to slowing climate change and minimizing its effects”, emphasizing that economic development must balance human and environmental interests. In so doing, and consistent with the envisioned *Made-in-Manitoba* pillars, the preamble describes the government's commitment to “address climate change, promote sustainable development, and protect and enhance water resources, natural habitat and biodiversity”.[3]

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at https://www.manitoba.ca/asset_library/en/eac/sd_response.pdf (accessed May 2022). In October 2021, the Minister of Conservation and Climate requested the Expert Advisory Council to provide advice and recommendations on emission reduction targets for the next carbon savings account 2023-2027.

24 Report of the Expert Advisory Council to the Minister of Sustainable Development: A Carbon Savings Account for Manitoba, June 2019 (2019), at p. 6, available at https://www.gov.mb.ca/asset_library/en/eac/eac_carbon_savings_report2019.pdf (accessed May 2022).

25 Report of the Expert Advisory Council to the Minister of Sustainable Development: A Carbon Savings Account for Manitoba, June 2019 (2019), available at https://www.gov.mb.ca/asset_library/en/eac/eac_carbon_savings_report2019.pdf (accessed May 2022).

1 *The Climate and Green Plan Act*, C.C.S.M., c. C134.

2 *The Climate and Green Plan Act*, C.C.S.M., c. C134, Preamble.

3

The Act defines "sustainable development" as: "development that meets the needs of the present generation without compromising the ability of future generations to meet their needs".[4]

Along with the imposition of specific requirements and consequential amendments as discussed in this chapter, the Act creates a framework for regulations by which additional or more specific actions may be developed. For example, the Act permits the Lieutenant Governor in Council to establish regulations to prescribe a gas or substance to be a "greenhouse gas" for the purposes of the Act.[5] The Lieutenant Governor may also prescribe the government "agencies" or "entities" tasked with reducing GHG emissions and improving sustainable operations within government activities[6] and may define any word or expression used but not defined in the Act.[7] The Act also gives the Lieutenant Governor in Council broad, general powers to make regulations respecting any matter considered necessary or advisable for carrying out the purpose of the Act. At the time of writing there were no regulations pursuant to the Act.

Provisions Related to the Climate and Green Plan

Section 2 of the Act empowers the Minister tasked with the administration of the Act to develop a "Climate and Green Plan". The plan must be a "comprehensive framework of programs, policies and measures" to reduce GHG emissions and address the effects of climate change and promote sustainable development.[8]

Consistent with the preamble of the Act, as well as the four "pillars" and vision of a comprehensive, integrated framework under the *Made-in-Manitoba Plan*, the plan under s. 2 of the Act must also improve the management and protection of Manitoba's water resources and preserve and protect Manitoba's natural habitat and biodiversity.[9]

The Climate and Green Plan Act, C.C.S.M., c. C134, Preamble.

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The Climate and Green Plan Act, C.C.S.M., c. C134, s. 1.

5

The Climate and Green Plan Act, C.C.S.M., c. C134, s. 12(a). "Greenhouse gas" is currently defined in the act as: "carbon dioxide, methane, nitrous oxide, sulphur hexafluoride and the prescribed categories of hydrofluorocarbons and perfluorocarbons, and includes any other gas or substance or category of gas or substance prescribed by regulation to be a greenhouse gas. *The Climate and Green Plan Act*, C.C.S.M., c. C134, s. 1.

6

The Climate and Green Plan Act, C.C.S.M., c. C134, ss. 12(b) and 10(1)-(2).

7

The Climate and Green Plan Act, C.C.S.M., c. C134, s. 12(c).

8

The Climate and Green Plan Act, C.C.S.M., c. C134, ss. 2(1)(a) and (b).

9

The Climate and Green Plan Act, C.C.S.M., c. C134, s. 2(1)(c) and (d).

When developing and implementing the plan, the Minister must take into account the advice and recommendations of the "Expert Advisory Council" established under the Act (discussed further below) and must conduct an annual review of the "programs, policies and measures" to determine if they are achieving their intended goals.[10]

Provisions Related to GHG Emissions Reduction Goals and the Carbon Savings Account

Pursuant to s. 3, the Minister, on the advice and recommendation of the Expert Advisory Council, must establish GHG emissions reductions goals in five-year periods, with the first five-year period running from 2018-2022.[11] Following the 2018-2022 goal (established within the first year of the coming into force of the Act), the goal for each subsequent five-year period is to be established by the Minister before the start of each period.[12]

GHG emission reduction goals are subject to "adjustment" in the event the reduction goal from a previous five-year period has not been met.[13] Whether an adjustment is required is dependent on the "carbon savings account" balance.

The "carbon savings account" established under s. 4 of the Act keeps a running balance of the GHG emissions reductions achieved in a five-year period in comparison to the emissions reduction goals set for those periods.[14] When GHG emissions reduction goals have not been met in a preceding five-year period, the shortfall from that five-year period is to be "added" to the emissions reduction goal in the subsequent five-year period.[15]

Pursuant to s. 8 of the Act, when providing advice and recommendations to the Minister respecting GHG emissions reductions goals, the Expert Advisory Council must have regard to:[16]

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10 *The Climate and Green Plan Act*, C.C.S.M., c. C134, s. 2(2) and (3).

11 *The Climate and Green Plan Act*, C.C.S.M., c. C134, s. 3(1) and (2).

12 *The Climate and Green Plan Act*, C.C.S.M., c. C134, s. 3(3). Note that in October 2021, the Minister tasked the Expert Advisory Council to provide advice and recommendations on emission reduction targets for the next carbon savings account 2023-2027. See letter from the Minister of Conservation and Climate to the Expert Advisory Council (October 5, 2021).

13 *The Climate and Green Plan Act*, C.C.S.M., c. C134, s. 4(2).

14 *The Climate and Green Plan Act*, C.C.S.M., c. C134, s. 4(1).

15 *The Climate and Green Plan Act*, C.C.S.M., c. C134, s. 4(2).

16 *The Climate and Green Plan Act*, C.C.S.M., c. C134, s. 8(2).

(a) the total projected GHG emissions for that five-year period, if no new GHG emissions reductions measures are implemented in that period;
(b) economic, industrial and demographic projections;
(c) the implementation of GHG emissions reduction measures;
(d) the availability and use of new and emerging technologies; and
(e) any other considerations the council considers relevant.

Provisions Related to the Expert Advisory Council

Section 7 of the Act establishes the Expert Advisory Council and its mandate. In addition to providing advice and recommendations to the Minister respecting GHG emissions reduction goals,[17] the Expert Advisory Council is to provide the Minister with advice and recommendations on "programs, policies and measures" to be included in the plan, review progress on the plan's implementation, and provide advice on any required changes.[18]

The Expert Advisory Council is permitted to establish subcommittees to perform specific duties and functions as well as the council's procedural rules and those of the subcommittees.[19]

The Act empowers the Minister to appoint to the Expert Advisory Council, persons the Minister "considers appropriate to an independent expert advisory council".[20]

Provisions Related to the Low Carbon Government Office

Section 9 of the Act establishes the Low Carbon Government Office (the "LCGO"), whose mandate is to develop and implement "policies, strategies and initiatives" to reduce GHG emissions and promote sustainable operations by government departments (or other government agencies or entities established pursuant to regulations under the Act).[21]

The Act requires the LCGO to focus on the following areas of activity:[22]

(a) sustainable procurement of goods and services;

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17 *The Climate and Green Plan Act*, C.C.S.M., c. C134, s. 8(1)(c). See previous heading in this chapter for list of "Section 8" factors that the Expert Advisory Council must take into account when advising or recommending GHG emissions reductions goals.

18 *The Climate and Green Plan Act*, C.C.S.M., c. C134, ss. 8(1)(a) and (b).

19 *The Climate and Green Plan Act*, C.C.S.M., c. C134, ss. 7(2) and (3).

20 *The Climate and Green Plan Act*, C.C.S.M., c. C134, s. 7(1).

21 *The Climate and Green Plan Act*, C.C.S.M., c. C134, s. 10(1).

22 *The Climate and Green Plan Act*, C.C.S.M., c. C134, s. 10(2).

(b) improved building design, construction and management;

(c) increased use of zero emission vehicles and reduced fuel consumption in government vehicle and equipment fleets;

(d) innovative use and management of information and communication technologies; and

(e) improved waste reduction and management operations.

The LCGO must also track and record the GHG emissions of all government departments (or other government agencies or entities established pursuant to regulations under the Act) on an annual basis.[23]

Provisions related to the Made-in-Manitoba Climate and Green Fund

Section 11 of the Act establishes the *Made-in-Manitoba Climate and Green Fund* (the "Fund"). The Fund is a continuation of the Sustainable Development Innovations Fund that was established under *The Sustainable Development Act* (which was repealed by the Act).

The purpose of the Fund is to provide financial support for "projects, studies and activities" that "will do one or more of the following":[24]

(a) reduce greenhouse gas emissions;

(b) address the effects of climate change, including measures to adapt to climate change;

(c) promote sustainable development;

(d) improve the management and protection of water resources;

(e) preserve and protect Manitoba's water resources, natural habitat and biodiversity.

Provisions Related to Reporting

Pursuant to sections 5 and 6 of the Act respectively, the Minister must prepare an "Annual report" and a "Five-year report".

The Annual report must report on programs, policies and measures employed in that year and include the following information: GHG emissions reductions achieved, if any; applicable emissions reduction goals and status of the carbon savings account; Expert Advisory Council activity summary; Low Carbon Government Office activity summary including GHG emissions report of all applicable government entities for that year; a "Made-in-Manitoba Climate and Green Fund" activities report, including a list of those receiving money and projects, studies or activities supported by the fund.[25]

The Five-year report must be completed no later than 18 months after the five-year period to which the report relates[26] and must include the following information: total amount of

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The Climate and Green Plan Act, C.C.S.M., c. C134, s. 10(3).

24

The Climate and Green Plan Act, C.C.S.M., c. C134, s. 11(2).

25

The Climate and Green Plan Act, C.C.S.M., c. C134, s. 5(1)-(6).

26

The Climate and Green Plan Act, C.C.S.M., c. C134, s. 6(3).

GHG emissions in Manitoba in that period; total amount of GHG emissions that would have occurred in that period if no new reduction measures had been implemented in that period; total GHG emissions reductions achieved in that period due to the implementation of new reduction measures in that period; and the GHG emissions reduction goal for that period and whether it was achieved.[27]

A copy of the Annual report or the Five-year report (as the case may be) must be tabled by the Minister "within 15 days after it has been prepared if the Assembly is sitting or, if it is not, within 15 days after the next sitting begins".[28]

Other Consequential Amendments

The 2018 Climate and Green Plan Act repealed *The Sustainable Development Act*[29] and *The Climate Change and Emissions Reductions Act*.[30]

See this chapter at §§8:8 and 8:18 for further discussion.

8:21. Significant Programs, Policies and Measures

The Climate and Green Plan Implementation Office

In January 2019, the government established the Climate and Green Plan Implementation Office within the Department of Sustainable Development, now the Department of Environment, Climate and Parks, to coordinate the work of the Manitoba government pursuant to the *Made-in-Manitoba Plan*.[1] The Climate and Green Plan Implementation Office ("CGPIO") provides key support to the Expert Advisory Council established under the Act.[2]

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27 *The Climate and Green Plan Act*, C.C.S.M., c. C134, s. 6(2).

28 *The Climate and Green Plan Act*, C.C.S.M., c. C134, ss. 5(7) and s. 6(4).

29 *The Climate and Green Plan Act*, C.C.S.M., c. C134, s. 13(b). See also *The Sustainable Development Act*, C.C.S.M., c. S270 (repealed).

30 *The Climate and Green Plan Act*, C.C.S.M., c. C134, s. 13(a). See also *The Climate Change and Emissions Reduction Act*, C.C.S.M. c. C135 (repealed).

1 Manitoba Sustainable Development, Annual Report 2018-2019 (2019), at pp. 6 and 92, available at https://www.gov.mb.ca/sd/pubs/annual-reports/annual_report_2018_19.pdf (accessed May 2022). See also Manitoba, "Province Establishes Climate and Green Plan Implementation Office", News Release (January 15, 2019), available at https://news.gov.mb.ca/news/index.html?item=44920 (accessed May 2022).

2 Manitoba Sustainable Development, Annual Report 2018-2019 (2019), at pp. 9 and 92, available at https://www.gov.mb.ca/sd/pubs/annual-reports/annual_report_2018_19.pdf

The mandate of the CGPIO is to:[3]

- "adopt leading practices and apply analysis" to achieve the goals of the *Made-in-Manitoba Plan*;
- ensure projects and programs are delivered on time, on budget and with expected results; and
- work collaboratively to foster relationships with stakeholders, other jurisdictions and non-government organizations.

CGPIO activities in 2018-2019 included: developing and maintaining partnerships with multiple institutions including the International Institute for Sustainable Development to support climate change mitigation and sustainable development; communicating Manitoba's ongoing mitigation, adaptation and green economy efforts to the public and other stakeholders; and working with Environment and Climate Change Canada and third-party modelling experts "to track GHG emissions and forecast reductions resulting from provincial policies and programs".[4]

In 2021, the Government committed $1.2 million to the CGPIO.

Youth Advisory Council

In September 2019, the Manitoba government announced its intention to create a "Youth Advisory Council" comprised of youths in the province of Manitoba ages 15-25. The goal of the Youth Advisory Council is to help "guide the discussions and actions" taken to mitigate climate change and implement the *Made-in-Manitoba Plan*. Following its first call for applications, the government selected nine young Manitobans in January 2020 to serve as members on the Youth Advisory Council. The Youth Advisory Council reports directly to the Expert Advisory Council.[5]

In 2021, the Minister of Conservation and Climate requested the Expert Advisory Council to provide input into the development of an Energy Policy Framework that would ensure the overarching objectives of the *Made-in-Manitoba Plan* are fully considered.[6] The framework

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(accessed May 2022).

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Manitoba, "Province Establishes Climate and Green Plan Implementation Office", News Release (January 15, 2019), available at https://news.gov.mb.ca/news/index.html?item=44920 (accessed May 2022).

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Manitoba Sustainable Development, Annual Report 2018-2019 (2019), at pp. 92-93, available at https://www.gov.mb.ca/sd/pubs/annual-reports/annual_report_2018_19.pdf (accessed May 2022).

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See Manitoba, "Province Selects Youth Advisory Council on Climate", News Release (January 7, 2020), available at https://news.gov.mb.ca/news/index.html?item=46637 (accessed May 2022). For additional information on the Youth Advisory Council see, Manitoba, Youth Advisory Council at https://www.gov.mb.ca/climateandgreenplan/yac.html (accessed May 2022).

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is currently in development.

Climate Pillar: Clean Energy

The last coal-fired generating station located in Brandon, Manitoba was decommissioned in 2018, "giving Manitoba the country's cleanest electricity grid with 99.7 per cent generated from renewable sources".[7]

Climate Pillar: Emissions Reductions

In 2010, Manitoba launched its "Electric Vehicle Roadmap" to encourage adoption of low-emitting technologies and electric and hybrid vehicles.[8] In 2014, Manitoba began installing publicly accessible electric vehicle charging stations in the downtown area.[9] Since that time, new transportation initiatives have been taken to support the *Made-in-Manitoba Plan*.

The *Highway Traffic Act* was amended in 2019 to permit the adoption of regulations that would allow zero-emission and other low-speed vehicles to be driven on highways.[10] A further amendment in 2021 permits the testing of automated vehicle technology, including testing of smart transportation infrastructure, which may impact future transportation and increase emissions reductions in Manitoba.[11]

In June 10, 2019, an investment of up to $5.9 million by the federal government and matched by a provincial contribution of $5.9 million was announced. The funding is to allow the Manitoba government to provide incentives for the installation of fuel-saving devices and retrofitting on heavy-duty freight trucks. The goal is to support the trucking sector "to reduce carbon pollution, increase economic competitiveness and save money on fuel".[12] The application

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See letter from the Minister of Conservation and Climate to the Expert Advisory Council (October 5, 2021).

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Manitoba, "Province to Engage Youth on Climate Change", News Release (September 27, 2019).

8

Manitoba, "Manitoba's Electric Vehicle Roadmap" (2011), available at https://www.gov.mb.ca/sd/environment_and_biodiversity/energy/pubs/elec_vehicle_road_map.pdf (accessed May 2022).

9

See Manitoba, "Manitoba Government Partners with The Forks to Launch Winnipeg's First Public Electric Charging Station" (May 2, 2014), available at https://news.gov.mb.ca/news/index.html?item=31045 (accessed May 2022).

10

The Highway Traffic Act, C.C.S.M. c. H60, s. 319(9).

11

The Vehicle Technology Testing Act, S.M. 2021, c. 22.

12

process for the Efficient Trucking program was launched March 2020. As of 2022, the program continues to accept applications three times a year. The program is estimated to result in 175 000 to 244 000 tonnes of cumulative GHG emissions savings by 2030.[13]

In October 2019, the government announced that it would remove 400 fleet vehicles to reduce the GHG emissions and associated costs with running them.[14] The government estimates that the subsequent smaller fleet will save the province approximately 8.8 million litres of fuel and could eliminate "the production of approximately 23,300 tonnes of greenhouse gases".[15]

In November 2019, the government announced that it would explore the electrification of Manitoba's transportation infrastructure to reduce the province's carbon footprint.[16]

In January 2020, then Premier Brian Pallister announced that Manitoba, along with having the cleanest electricity in Canada, will soon also have the cleanest fuels in Canada through the introduction of new fuel standards that would increase the ethanol content of gasoline (from 8.5% to 10%) and the biodiesel content of diesel (from 2% to 5%).[17] These changes were implemented at the start of 2022 and is estimated to result in 220000 tonnes of

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Canada, "Canada and Manitoba Announce Climate Action in the Trucking Sector", News Release (June 10, 2019), available at https://www.canada.ca/en/environment-climate-change/news/2019/06/canada-and-manitoba-announce-climate-action-in-the-transportation-sector.html (accessed May 2022).

13

Manitoba, "Manitoba Launches Another Intake for Efficient Trucking Program", News Release (June 1, 2021), available at https://news.gov.mb.ca/news/index.html?item=51365&posted=2021-06-01 (accessed May 2022).

14

Manitoba, "Manitoba Reduces Number of Government Fleet Vehicles", News Release (October 29, 2018), available at https://news.gov.mb.ca/news/index.html?item=44721 (accessed May 2022).

15

Manitoba, "Manitoba Reduces Number of Government Fleet Vehicles", News Release (October 29, 2018), available at https://news.gov.mb.ca/news/index.html?item=44721 (accessed May 2022).

16

Manitoba, "Province Presents Speech from the Throne to Move Manitoba Forward", News Release (November 19, 2019), available at https://news.gov.mb.ca/news/print,index.html?item=46237 (accessed May 2022).

17

Manitoba "Manitoba Will Have Cleanest Fuel Standards in Canada", News Release (January 21, 2020), available at https://news.gov.mb.ca/news/index.html?item=46739 (accessed May 2022).

annual GHG emissions reductions.[18]

In 2021, the government provided $8.7 million to municipalities, companies and organizations to support waste reduction and recycling, including the reduction of organic waste in landfills through composting. $894 000 of the funds was directed as support payments to private and public compost facilities producing large volumes of high-quality compost. Waste and landfills currently account for approximately 3.3% of Manitoba's annual GHG emissions. Because organic waste comprises 40% of landfill material, according to the government, it represents the "largest opportunity" to reduce GHG emissions from waste going to landfills.[19]

For discussion regarding the potential reduction of emissions through the agricultural sector's use of nutrients see this chapter at §8:29.

Jobs Pillar (Sustainable Development, Economic Growth and Green Infrastructure)

In 2018, the Manitoba government issued the *Growing Manitoba's Economy* report. The report describes that in developing Manitoba's economic development plan, care must be taken "to ensure alignment across government of those strategies that have implications for economic development"; this includes alignment with the *Made-in-Manitoba Plan*.[20]

In September 2019, the government announced initiatives to support green jobs including the "Economic Growth Action Plan" and youth summer employment programs to provide hands on experience to support sustainability.[21]

Following initial agreements between Canada and Manitoba in 2016 and 2018, on June 2019 the Manitoba government announced the official launch of the Investing in Canada Infrastructure Program ("ICIP"), a joint program of Canada and Manitoba. Under the ICIP, more than $3 billion dollars (from federal, provincial, and other partners) will be invested in the province over 10 years to support projects in four streams which include a "green infrastructure

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Manitoba, "Province Takes Further Steps to Reduce Greenhouse-Gas Emissions", News Release (December 22, 2020), available at https://news.gov.mb.ca/news/index.html?item=50098&posted=2020-12-22 (accessed May 2022).

19

Manitoba, Provincial Funding Supports Manitoba Waste Reduction and Recycling", News Release (September 28, 2021), available at https://news.gov.mb.ca/news/index.html?item=52543 (accessed May 2022). See also Manitoba, "Province Launches Organics Green Impact Bond", News Release (February 22, 2021), available at https://news.gov.mb.ca/news/index.html?item=50857 (accessed May 2022).

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Manitoba, Growing Manitoba's Economy, Co-Chair's Findings and Recommendations (December 2018) pp. 14-15, available at https://www.gov.mb.ca/jec/egap/files/cochairs_report.pdf (accessed May 2022).

21

Manitoba, "Province to Engage Youth on Climate Change" News Release (September 27, 2019).

stream" (emissions reduction, mitigation, and adaptation and resilience to climate change impacts) and a "public transit infrastructure stream" (building new transit networks and service extensions to improve *inter alia* capacity, safety, quality, access and efficiency).[22] In Manitoba, several projects have been approved for ICIP funding and include, for example, the "Transition to Zero Emission Buses" project which funded *inter alia* the purchase of approximately 100 zero-emission buses and charging infrastructure.[23]

In July 2020, the government unveiled the Conservation and Climate fund to provide grants to support new projects of businesses, non-profits, municipalities, indigenous communities or educational institutions that reduce greenhouse gas emissions, address the effects of climate change, or promote sustainable development.[24] The government recently increased the fund from its initial size of $600 000 to $1.5 million.[25]

In February 2021, the government also launched its first Green Impact Bond which requires a service provider to meet agreed-upon outcomes for organic waste diversion, job creation and GHG reduction with investors providing financing for the project. If the outcomes are met by the end of the program, the Province pays a return on the investments made. The first participating service provider is a Manitoba company, Innovative NRG, which converts organic waste to usable thermal energy.[26]

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Manitoba, "Manitoba Launches Investing in Canada Infrastructure Program", News Release (June 3, 2019), available at https://news.gov.mb.ca/news/index.html?item=45334 (accessed May 2022). For additional information see Canada, Investing in Canada Infrastructure Program in Manitoba - Funding Breakdown, available at https://www.infrastructure.gc.ca/plan/prog-proj-mb-simple-eng.html (accessed May 2022). See also Manitoba, Investing in Canada Infrastructure Program (ICIP), available at https://www.gov.mb.ca/fpir/strainfrasec/investing/index.html (accessed May 2022).

23

Government of Canada. Backgrounder: Canada and Manitoba Invest in Public Transit Infrastructure in Winnipeg (July 2022), available at https://www.canada.ca/en/office-infrastructure/news/2022/07/backgrounder-canada-and-manitoba-invest-in-public-transit-infrastructure-in-winnipeg.html (accessed July 2022).

24

Manitoba, "Province Unveils New Conservation and Climate Fund", News Release (July 9, 2020), available at https://news.gov.mb.ca/news/index.html?item=48564&posted=2020-07-09 (accessed May 2022). See also Manitoba, Fund Guide, available at https://www.gov.mb.ca/grants/pdf/ccf-fund-guide.pdf (accessed May 2022).

25

Manitoba, "Manitoba Government Announces $1.5 Million Investment in Grants for Green Projects in Budget 2022", News Release (April 22, 2022), available at https://news.gov.mb.ca/news/index.html?item=54277&posted=2022-04-22 (accessed May 2022).

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Water Pillar

In 2018, the Manitoba and Canadian governments agreed to cost-share up to $540 million in developing new flood management infrastructure for the Lake Manitoba and Lake St. Martin outlet channels.[27] The project involves building two 23-km long diversion channels as well as bridges, water control structures, a 24-kilovolt distribution line and adjusting infrastructure for the surrounding highways.[28] The project is the first project funded under the newly launched federal Disaster Mitigation and Adaptation Fund ("DMAF"), a national merit-based program that supports "large-scale infrastructure projects to help communities better manage the risks of disasters triggered by natural hazards". DMAF projects "are to support the Government of Canada's objectives laid out in the Pan-Canadian Framework on Clean Growth and Climate Change".[29]

In June 2019, Manitoba announced the establishment of a $52 million endowment fund for the Growing Outcomes in Watersheds ("GROW") Trust, developed in partnership with the Manitoba Habitat Heritage Corporation, a non-profit Crown corporation established through *The Manitoba Habitat Heritage Act*.[30] GROW is delivered through local GROW committees. The GROW program is aimed at supporting climate change resiliency and the overall goals of the *Made-in-Manitoba Plan* by enhancing the ability to "mitigate climate change, reduce flooding and improve water quality and nutrient management in our watersheds".[31]

Manitoba, "Province Launches Organics Green Impact Bond", News Release (February 22, 2021), available at https://news.gov.mb.ca/news/index.html?item=50857 (accessed May 2022).

27

Manitoba, "Funding Announced for New Lake Manitoba and Lake St. Martin Outlet Channels", News Release (June 18, 2018); see also Manitoba, "Information Sessions Planned for Lake Manitoba Outlet Channels Project", News Release (June 6, 2019).

28

Manitoba, "Funding Announced for New Lake Manitoba and Lake St. Martin Outlet Channels", News Release (June 18, 2018). For update see Manitoba, Lake Manitoba, Lake St, Martin Outlet Channels Project (Frebruary 2022).

29

Infrastructure Canada, Disaster Mitigation and Adaptation Fund, available at https://www.infrastructure.gc.ca/dmaf-faac/index-eng.html (accessed May 2022).

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The Manitoba Habitat Heritage Act, S.M. 1985-86, c.15 has since been repealed by *The Manitoba Habitat Heritage Corporation Reorganization Act*, S.M. 2020, c.21 at Schedule B (November 6, 2020).

31

Manitoba, "Province Announces $52-Million 'GROW' Fund to Support Wetland Protection and Watershed Management", News Release (June 11, 2019). See also Manitoba Habitat Heritage Corporation Funded Projects, available at https://mhhc.mb.ca/funded-projects (accessed May 2022).

In January 2020, Manitoba proclaimed *The Watershed Districts Act*.[32] The purposes of the Act are *inter alia* to: "provide for the protection, preservation, conservation, management, control and prudent use of resources through" the establishment of watershed districts, and the development and implementation of schemes by the watershed districts.[33] The Act "transitioned 18 conservation districts to 14 new watershed districts with boundaries based on watersheds".[34] The administration of the Act is to have regard for the principle that "a comprehensive, integrated and coordinated approach to managing watersheds as a whole promotes the health and sustainability of resources within a watershed district's boundaries".[35] As described by the Conservation and Climate Minister:[36]

> Our government is committed to becoming Canada's cleanest, greenest, most climate-resilient province, and an important part of achieving that goal is to ensure the sustainability of our wetlands and watershed today, and for generations to come ... initiatives to address overall water management and water quality are critical as we move forward to address climate change and improve watershed resiliency in the face of floods, drought and extreme weather events.

The previous provincial water management strategy concluded in 2003.[37] In January 2021, the Expert Advisory Committee made recommendations for the creation of a new provincial water management strategy to address concerns of drought and flood, water quality, habitat preservation, and efficient use of the water supply.[38] On May 6, 2021 funding of up to $1

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32 *The Watershed Districts Act*, C.C.S.M., c. W95.

33 *The Watershed Districts Act*, C.C.S.M., c. W95, s. 2.

34 Sustainable Development, Manitoba's Watershed Districts, available at https://gov.mb.ca/sd/water/watershed/wd/index.html (accessed May 2022).

35 *The Watershed Districts Act*, C.C.S.M., c. W95, s. 2.1.

36 Manitoba, "Province Proclaims Watershed Districts Act", News Release (December 30, 2019).

37 Manitoba, Engaging Manitobans on Water Management (July 2021), at p.2, available at https://gov.mb.ca/asset_library/engagemb/agriculture/waterstrategy/water-management.pdf (accessed May 2022).

38 Expert Advisory Council, Report of the Expert Advisory Council to the Minister of Conservation & Climate: Recommendations for a Provincial Water Management Strategy for Manitoba (January 2021) at pp. 15 and 16, available at https://manitoba.ca/asset_library/en/eac/eac_recommendations.pdf (accessed May 2022).

million was announced but a finalized strategy has yet to be created.[39]

Nature Pillar

A $102 million Conservation Trust was established in 2018 as part of the *Made-in-Manitoba Plan* to "fund activities that promote the conservation of natural resources by creating, conserving or enhancing the natural infrastructure for the benefit of Manitobans".[40] The Conservation Trust is held by the Winnipeg Foundation and administered by the Manitoba Habitat Heritage Corporation.[41] As described by the CGPIO which supported its establishment, the Conservation Trust provides support "with an estimated $5 million in endowment-related income annually to be used to achieve the goals and objectives" of the *Made-in-Manitoba Plan* related to "conserving ecosystems, enhancing natural infrastructure, improving water quality and strengthening drought and flood mitigation".[42] Funding is based on a two-to-one matching formula.

The application process began in December 2018 with the first round of projects approved in April 2019. The funding for the 41 projects from 31 organizations totaled over $2.2 million across the areas of watersheds, habitat and wildlife, connecting people to nature, and innovation and conservation. Amongst these included the Kirkella Community Pasture Grassland Enhancement project (funding $100,000, total project $200,000) aimed at improving 3,000 acres of the pasture resulting in "enhanced grassland and wetland habitat, improved pasture productivity, better soil health and carbon capture".[43]

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Manitoba, "Province Invests in Creation of New Water Management Strategy", News Release (May 6, 2021), available at https://news.gov.mb.ca/news/index.html?item=51221&posted=2021-05-06 (accessed May 2022).

40

Manitoba Habitat Heritage Corporation, The Conservation Trust, available at https://www.mhhc.mb.ca/the-conservation-trust (accessed May 2022).

41

Manitoba Sustainable Development, Annual Report 2018-2019 (2019) at p. 93, available at https://www.gov.mb.ca/sd/pubs/annual-reports/annual_report_2018_19.pdf (accessed May 2022).

42

Manitoba Sustainable Development, Annual Report 2018-2019 (2019) at p. 93, available at https://www.gov.mb.ca/sd/pubs/annual-reports/annual_report_2018_19.pdf (accessed May 2022).

43

Manitoba, "Province Unveils First Projects under Conservation Trust", New Release (April 15, 2019). For current list of funded projects, see The Manitoba Habitat Heritage Corporation, Funded Projects - Spring 2022, available at https://mhhc.mb.ca/wp-content/uploads/2022/03/CT_2022-PROJECTS-LIST_with-funding-amounts_2022_03_03.pdf

8:22. *The Biofuels Act*[1]

Manitoba was an early adopter of biofuels and the first jurisdiction in Canada to implement a biodiesel mandate.[2] The *Biofuels Act* is aimed directly at the regulation of activities contributing to climate change through the emission of GHGs and came into force on December 4, 2003. The express purpose of the Act is to "encourage and support the production and use of cleaner fuels, such as ethanol and other biofuels". When enacted, Manitoba was already the home of a large ethanol production facility owned and operated by Husky Oil. This legislation provided the impetus to significantly expand that operation and to encourage the development of a biodiesel industry by establishing standards for denatured ethanol and biofuels, by allowing for regulations to prescribe minimum ethanol and biofuel content in gasoline and diesel fuel and by providing for the creation of a grant program to support biofuel production in Manitoba.[3]

The Biofuels Act establishes a system of licensing for biofuel manufacturers in Manitoba. Those licensed manufacturers are required to keep records and report to the Minister in accordance with the regulations.[4] *The Biofuels Act* also established an Ethanol Fund to support ethanol production in Manitoba through a system of grants.[5] The fund was based on a portion of provincial revenues collected pursuant to *The Gasoline Tax Act*[6] and *The Fuel Tax Act*[7] related to the amount of ethanol manufactured and consumed in Manitoba.[8] The fund was established for a

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(accessed May 2022).

1 *The Biofuels Act*, C.C.S.M., c. B40 (as amended).

2 Manitoba Government, Department of Municipal Government, Energy Division, available at https://www.gov.mb.ca/sd/environment_and_biodiversity/energy/biofuels/index.html (accessed May 2022).

3 *The Biofuels Act*, C.C.S.M. c. B40, s. 6.1(1).

4 *The Biofuels Act*, C.C.S.M. c. B40, ss. 4(1), 4(2) and 6(1).

5 *The Biofuels Act*, C.C.S.M. c. B40, s. 6.4(1).

6 *The Gasoline Tax Act*, C.C.S.M., c. G40 (repealed April 1, 2011).

7 *The Fuel Tax Act*, C.C.S.M., c. F192.

8 *The Biofuels Act*, C.C.S.M. c. B40, s. 6.4(2).

period ending at the end of the Province's 2016-2017 fiscal year.[9]

Fuel suppliers who fail to include the prescribed proportion of denatured ethanol in gasoline-based fuels sold are required to pay a penalty calculated in accordance with the regulations.[10] Unpaid penalties constitute a debt due to the Crown and may be collected as such.[11] The department is given inspection and audit and inspection powers similar to those contained in provincial taxing legislation.[12] The *Biofuels Act* also grants Cabinet broad regulation-making powers to regulate and mandate the use of biofuels, including ethanol and biodiesel.[13]

The Biodiesel General Regulation[14] sets out the specifications for biodiesel or blended biodiesel sold or offered for sale in Manitoba and creates a licensing scheme for manufacturers of biodiesel fuels.

The Biodiesel Fund Grant Regulation[15] provided incentive to Manitoba producers of biodiesel by offering a production grant of 14 cents per litre of biodiesel. The Fund ran for five years, from April 1, 2010 to March 31, 2015. *The Ethanol General Regulation*[16] contains similar requirements related to the standardization of ethanol and ethanol-blended fuels and the licensing of denatured ethanol manufacturers in Manitoba. This regulation also requires fuel suppliers to comply with the "denatured sales mandate" which sets out minimum percentages of total volumes of gasoline and gasohol supplied in Manitoba that must be denatured alcohol.[17] The

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9 *The Biofuels Act*, C.C.S.M. c. B40, s. 6.4(7).

10 *The Biofuels Act*, C.C.S.M. c. B40, s. 7(1) and (2).

11 *The Biofuels Act*, C.C.S.M. c. B40, s. 10(1)-(4).

12 *The Biofuels Act*, C.C.S.M. c. B40, ss. 11 to 18.

13 *The Biofuels Act*, C.C.S.M. c. B40, s.19.

14 *The Biodiesel General Regulation*, Man. Reg. 178/2008 (November 24, 2008).

15 *The Biodiesel Fund Grant Regulation*, Man. Reg. 91/2010 (July 8, 2010).

16 *The Ethanol General Regulation*, Man. Reg. 165/2007 (as amended by Man. Reg. 149/2020).

17 *The Ethanol General Regulation*, Man. Reg. 165/2007 (as amended by Man. Reg. 149/2020).

percentage volume started at 5% for the reporting period January 1 to March 31, 2008, and increased to 8.5% for 2009 and subsequent years.[18] The percentage volume further increased to 9.25% for 2021 and to 10% for 2022 and subsequent years.[19] Penalty payments are provided for based on sales volumes, along with additional monetary penalties that may be imposed by the Minister.[20] Changes to the regulations to increase the minimum percentages of ethanol content for both gasoline and biodiesel are anticipated for spring 2020.

8:23. *The Efficiency Manitoba Act*[1]

Acting on a recommendation from the Public Utilities Board, the Manitoba government passed legislation that created a new demand-side management agency. *The Efficiency Manitoba Act*, which was enacted in 2017 and proclaimed in January 2018, established a stand-alone Crown Corporation called "Efficiency Manitoba".[2] Efficiency Manitoba's mandate is to: develop and implement initiatives to meet savings targets; achieve reductions in the consumption of electrical energy and natural gas in a cost-effective way; and promote private sector involvement in demand-side management initiatives. The government describes Efficiency Manitoba as a "one-stop shop for consumers, businesses, institutions and industry looking for information and tips regarding resource efficiency".[3]

Under the Act, Efficiency Manitoba may establish and administer on-meter efficiency programs, water conservation measures, provide advice to Manitoba Hydro and undertake educational initiatives.[4] Manitoba has set gas and electricity savings targets under the Act which will be monitored and reported on by Efficiency Manitoba. The legislated targets aim to save 1.5% of annual domestic electricity demand and 0.75% of annual domestic natural gas demand

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18 *The Ethanol General Regulation*, Man. Reg. 165/2007.

19 *The Ethanol General Regulation*, Man. Reg. 165/2007 (as amended by Man. Reg. 149/2020).

20 *The Ethanol General Regulation*, Man. Reg. 165/2007 (as amended by Man. Reg. 149/2020).

1 *The Efficiency Manitoba Act*, C.C.S.M., c. E15. Note: not all provisions of the Act were in force upon proclamation.

2 *The Efficiency Manitoba Act*, C.C.S.M., c. E15, ss. 1 and 3.

3 See Manitoba, "Province announces First Efficiency Manitoba CEO", News Release (December 20, 2018), available at https://news.gov.mb.ca/news/index.html?item=44867 (accessed May 2022).

4 *The Efficiency Manitoba Act*, C.C.S.M., c. E15, ss. 4 and 14.

over a period of 15 years.[5] The Act also requires Efficiency Manitoba to demonstrate a cumulative total of 22.5% savings in electrical energy and 11.25% savings in natural gas over the 15-year period.[6]

The Act requires Efficiency Manitoba to prepare an efficiency plan and to submit it for review by the Public Utilities Board ("PUB"). The efficiency plan must include information related to savings targets, educational initiatives, cumulative net savings and shortfalls as well as analysis of reductions in GHG emissions expected to result from initiatives taken.[7] The Act requires that plans be submitted every three years following the commencement date of the Act.[8] The first three-year plan was submitted to the PUB for review on November 1, 2019, with an implementation date of April 1, 2020.[9]

Additional powers of Efficiency Manitoba with respect to energy efficiency initiatives were identified in regulations passed in 2019. These include: participating in developing and updating building or energy codes (including model codes); education and training re. building or energy codes; and developing and implementing programs to improve building designs, techniques and technologies.[10]

Efficiency Manitoba is to be tasked with the continuation of the Affordable Energy Fund under *The Energy Savings Act*. Regulations passed in 2019 limited the use of the Affordable Energy Fund to initiatives that "encourage and realize efficiency improvements and conservation in the use of home heating fuels other than electrical energy or natural gas, and not for any other purpose".[11]

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5 *The Efficiency Manitoba Act*, C.C.S.M., c. E15, s. 7(1).

6 *The Efficiency Manitoba Act*, C.C.S.M., c. E15, s. 7(2).

7 *The Efficiency Manitoba Act*, C.C.S.M., c. E15, ss. 9 and 10.

8 *The Efficiency Manitoba Act*, C.C.S.M., c. E15, ss. 9 and 10.

9 *The Efficiency Manitoba Regulation*, Man. Reg. 119/2019, s. 2 (as amended by Man. Reg. 132/2019). See also Efficiency Manitoba, Three-Year Energy Efficiency Plan Submission 2020-2023, available at https://efficiencymb.ca/articles/category/three-year-energy-efficiency-plan-submission-2020-2023/ (accessed May 2022).

10 *The Efficiency Manitoba Regulation*, Man. Reg. 119/2019, s. 2 (as amended by Man. Reg. 132/2019), s. 7.

11 *The Efficiency Manitoba Regulation*, Man. Reg. 119/2019, s. 2 (as amended by Man. Reg. 132/2019), s. 14.

In January 2021, Efficiency Manitoba received funding from the federal government to support its residential, commercial, industrial and agricultural natural gas reduction programs. The residential program provides rebates, incentives and information to improve the energy efficiency of homes through such measures as adding home insulation, using smart thermostats, or upgrading furnaces and boilers. The commercial, industrial and agricultural programs provide rebates and incentive to support energy savings by funding mechanical upgrades of heating systems, building renovations, and the purchase of equipment for new buildings.[12]

8:24. Carbon Capture and Sequestration

Notwithstanding legislative initiatives aimed at the protection of peatlands and wetlands, Manitoba currently does not have any laws dealing specifically with carbon sequestration. In 2008, the Manitoba Department of Mineral Resources, Petroleum Branch (then the Department of Science, Technology, Energy and Mines) provided royalty relief for an enhanced oil recovery project being undertaken by Tundra Oil and Gas Partnership as a pilot project approximately 30 km southwest of Virden, Manitoba.[1] The project was expected to inject approximately 5,500 tonnes of the carbon dioxide captured annually from the Koch fertilizer manufacturing facility near Brandon, Manitoba (one of Manitoba's large industrial emitters) into nearby oil formations to enhance petroleum recovery.[2] The carbon dioxide was expected to be pumped into and possibly sequestered in some of Manitoba's most productive oil field formations. This project has resulted in the first CO2 Enhanced Oil Recovery Order to be issued under *The Oil and Gas Act*.[3] Captured CO2 was intended to be trucked to the oil fields. Foregone royalties during the pilot project phase were expected to be more than recovered should the oil recovery project prove to be successful.

The Government of Manitoba has also provided funding of up to $1.25 million to assist the City of Brandon in constructing a landfill gas capture system at its Eastview landfill site.[4] In

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12 Manitoba, "Government of Canada Announces Support for Manitoba Energy-Efficiency Programs", News Release (January 29, 2021), available at https://news.gov.mb.ca/news/index.html?item=50457&posted=2021-01-29 (accessed May 2022).

1 See Manitoba, "CO2 Enhanced Oil Recovery", News Release and Backgrounder (November 24, 2008), available at https://perma.cc/AEU6-YRN6 (accessed May 2022).

2 Manitoba, "CO2 Enhanced Oil Recovery", News Release and Backgrounder (November 24, 2008), available at https://perma.cc/AEU6-YRN6 (accessed May 2022).

3 *The Oil and Gas Act*, C.C.S.M., c. O34.

4 City of Brandon, Eastview Landfill Site Annual Report 2021, at p.19, available at https://brandon.ca/images/pdf/Sanitation/2021-Sanitation_Annual_Report.pdf (accessed May

2021, 8 953 tonnes of CO2e were diverted, the equivalent of taking 1,905 vehicles off the road. By 2030, the gas capture system is expected to have cumulatively diverted 39.5 kt CO2e.[5]

Manitoba promotes agricultural sequestration of CO2 through the Growing Assurance-Environment Program (under Growing Forward 2), which provides funding for the implementation of beneficial management practices (BMPs) that carry both climate change mitigation and adaptation benefits such as increased manure management and wetland restoration. In order to qualify for funding, applicants must complete an Environmental Farm Plan.[6]

For funding opportunities related to mitigation and carbon sequestration and storage initiatives specifically taken under the new *Made-in-Manitoba Plan* see this chapter at §8:21 subheadings "Water Pillar" and "Nature Pillar".

8:25. Biomass Thermal Generation

Biomass energy or bioenergy "refers to all forms of renewable energy that are derived from plant materials produced by photosynthesis".[1] In Manitoba, common biomass fuel sources include flax shives, sunflower hulls and waste wood.[2]

In 2011, The Manitoba Biomass Energy Support Program ("MBESP") was established to support current coal users to transition to renewable biomass fuels. The program was expanded in 2014 to include support for research and development to advance the processing and

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2022).

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City of Brandon, Eastview Landfill Site Annual Report 2021, at p.20, available at https://brandon.ca/images/pdf/Sanitation/2021-Sanitation_Annual_Report.pdf (accessed May 2022). See also Manitoba, Ag Action Manitoba Program for Farmers: A Program Guide to the Terms and Conditions 2018-2023, Version 10 (2018), at pp. 16 and 17, available at https://www.gov.mb.ca/agriculture/canadian-agricultural-partnership/pubs/guidebook/ag-action-mb-program-guide-for-farmers.pdf (accessed May 2022).

6

Environment and Climate Change Canada, Canada's 4th Biennial Report to the United Nations Framework Convention on Climate Change (2020), at p. 106, available at https://unfccc.int/sites/default/files/resource/br4_final_en.pdf (accessed May 2022).

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Manitoba Sustainable Development, A Made-in-Manitoba Climate and Green Plan (2017), at p.12, available at https://www.gov.mb.ca/asset_library/en/climatechange/climategreenplandiscussionpaper.pdf (accessed May 2022).

2

Canada and Manitoba, "Governments Support Projects and Research Using Biomass Energy", News Release, available at https://news.gov.mb.ca/news/index.html?item=37336 (accessed May 2022).

use of biomass fuels.[3] Projects funded under this program have included: the conversion of a coal-fired central heating system to a new, biomass boiler in Willow Creek Colony, near Cartwright; funding for new equipment allowing Southeast Pallet and Wood Products in Blumenort to double their annual biomass processing capacity; and improving on-site storage of finished biomass fuels to Spruce Products Ltd. in Swan River.[4] As of 2016, MBESP provided approximately $3 million for projects that have reduced GHG emissions by more than 15,000 tonnes annually.[5]

In 2012, Manitoba implemented an emissions tax under *The Emissions Tax on Coal and Petroleum Coke Act*.[6] The revenues from the tax helped to fund the MBESP. A ban on coal and petroleum coke came into effect in 2017.[7]

Other Biomass incentive programs have included Manitoba Hydro's Bioenergy Optimization Program, which supported customers to convert biomass waste streams and by-products into fuel that produces useful heat and power. It offered technical and financial support to help its customers install, operate and maintain equipment that uses biomass to replace hydroelectric power.[8] One project under the program was a demonstration project with Spruce Products Limited and Waste Gas Power to develop a Waste Heat Demonstration Project at Spruce Products' lumber sawmill in Swan River, Manitoba.

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Canada and Manitoba, "Governments Support Projects and Research Using Biomass Energy", News Release, available at https://news.gov.mb.ca/news/index.html?item=37336 (accessed May 2022). See also Manitoba,Manitoba Biomass Energy Support Program, available at https://www.manitoba.ca/agriculture/innovation-and-research/print, biomass-energy-support-program.html (accessed May 2022).

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Canada and Manitoba, "Governments Support Projects and Research Using Biomass Energy", News Release (January 18, 2016), available at https://news.gov.mb.ca/news/index.html?item=37336 (accessed May 2022).

5

Canada and Manitoba, "Biomass Program Continues to Support Transition to Renewable Energy in Manitoba", News Release (July 28, 2016), available at https://news.gov.mb.ca/news/index.html?item=38811 (accessed May 2022).

6

The Emissions Tax on Coal and Petroleum Coke Act, C.C.S.M., c. E90.

7

Coal and Petroleum Coke Ban for Space Heating Regulation, Man. Reg. 183/2013.

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Canada, Bioenergy Optimization Program Demonstration, available at https://www.nrcan.gc.ca/science-and-data/funding-partnerships/funding-opportunities/current-investments/bioenergy-optimization-program-demonstration/4959 (accessed May 2022).

Several other initiatives exploring biomass production and carbon offsets in the province continue to be undertaken. See for example, the International Institute for Sustainable Development pilot project studying the commercial scale harvesting of cattails as means of removing nutrient pollutants from the Lake Winnipeg watershed while creating a bio-energy product.[9]

8:26. Bills-- The Climate and Green Plan Amendment Act

Bill 203, *The Climate and Green Plan Amendment Act (Improved Climate Change Targets and Enhanced Ministerial Accountability)* received first reading on November 28, 2019. According to the preamble, the Bill was aimed at improving government accountability to enhance the government's effectiveness in addressing climate change. The Bill included provisions to amend *The 2018 Climate and Green Plan Act* to include *inter alia* emissions reductions targets, requirements for the regular review of targets and the obligation to take into account internationally accepted scientific findings, including the UN Intergovernmental Panel on Climate Change.[1] However, the Bill did not proceed to second reading.

8:27. Bills-- Waste Diversion and Recycling

Manitoba recently began examining the current waste diversion and recycling framework in the province in order to identify strengths and gaps as well as options to modernize and improve the current framework, including, *inter alia*, regulatory review of *The Waste Reduction and Prevention Act*.[1]

In February 2020, Manitoba announced that in order to further reduce GHG emissions, the government is planning to increase recycling of end-of-life "whitegoods" (for example, refrigerators, freezers, dehumidifiers, water coolers, air-conditioning units) through amendments to the regulatory framework regarding.[2] No bill or regulations, however, have been introduced at the time of writing.

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International Institute for Sustainable Development, "Cattail Biomass in a Watershed-Based Bioeconomy" (March 2014).

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Bill 203, The Climate and Green Plan Amendment Act (Improved Climate Change Targets and Enhanced Ministerial Accountability), ss. 1 and 2.

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See for example discussion in, Manitoba Conservation and Climate, Manitoba Waste Diversion and Recycling Review, Executive Summary (April 20, 2021) available at https://gov.mb.ca/asset_library/engagemb/climate/wastediversion/recycling-framework-executive-summary.pdf (accessed May 2021).

2

Manitoba, "Province Builds on Commitment to Increase Household Appliance Recycling", News Release (February 6, 2020), available at https://news.gov.mb.ca/news/index.html?item=46822 (accessed May 2022).

B. Adaptation

8:28. Generally

Since 2008, the Manitoba government has been endeavouring to integrate climate change adaptation across provincial planning and decision-making, particularly in the areas of flood mitigation, emergency preparedness and land use planning.[1] The Department of Conservation and Water Stewardship (as it was known at the time) has coordinated the adaptation strategy across governmental departments in addition to being directly involved in many of its initiatives.[2] Much of the adaptation work in Manitoba has focused on increasing knowledge of climate change impacts, identifying risks and possible solutions. Manitoba's participation in the Prairies Regional Adaptation Collaborative ("PRAC") has formed a significant part of its adaptation work from 2009 to 2021. Through PRAC and the Adaptation Platform programs of Natural Resources Canada, Manitoba has explored potential adaptation options for the province's water, terrestrial (forest, grassland/forage) resources, wetlands, coastal zone, and the sectors of agriculture, mining, and northern transportation.[3] Although the PRAC ended in 2021, ClimateWest is continuing this work as a "central hub" for climate services, providing information and support for effective planning and decision making. Like the PRAC, ClimateWest it is a partnership between Manitoba, Alberta and Saskatchewan and the federal government.[4]

The *2015 Action Plan* referred to a number of measures in the areas of water and ecosystems, public health and emergency management and northern communities. Initiatives taken under this previous plan included:

- expansion of the Manitoba Surface Water Management Strategy to improve and protect water quality and prepare for extreme events;
- collaboration with the Lake Friendly Alliance, the Prairie Provinces Water Board, and the Red River Basin Commission to solve issues surrounding the health of Lake Winnipeg;
- development of a drought management strategy;

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See Manitoba, Manitoba's Report on Climate Change for 2012, Department of Conservation and Water Stewardship (February 2014) at p.24, available at https://www.manitoba.ca/sd/climate/pdf/2012_climate_change_web.pdf (accessed May 2022).

2

See Saskatchewan Watershed Authority, Prairies Regional Adaptation Collaborative: Advancing Climate Change Adaptation on the Prairies (2012), available at https://perma.cc/3ELZ-5QJC (accessed May 2022). See also generally The Prairies Regional Adaptation Collaborative, available at https://www.prairiesrac.com (accessed May 2022).

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See Manitoba, Manitoba's Report on Climate Change for 2012, Department of Conservation and Water Stewardship (February 2014) at p.23, available at https://www.manitoba.ca/sd/climate/pdf/2012_climate_change_web.pdf (accessed May 2022).

4

See ClimateWest, About, available at https://climatewest.ca/about/ (Accessed May 2022).

• provide funding to The Churchill Marine Observatory for research on oil and gas exploration and adaptation to climate change;

• partnering with Manitoba Agriculture to develop the Local Food Procurement Pilot Program to pilot ways of increasing food security and encouraging engagement in sustainable food projects; and

• development of an integrated watershed management plan to prepare for potential water shortages.[5]

In the area of public health and emergency management, Manitoba is planning for the possibility of increased heat stress, more air pollutants associated with fires and drought conditions and increased exposure to water-borne diseases and disease-carrying insects. It is expected that communities will have to develop improved emergency response systems and infrastructure in preparation for more severe weather events. The Government of Manitoba is working with municipalities to establish local emergency management plans for these anticipated extreme weather events and to increase the speed and effectiveness of local and regional emergency response measures.[6]

The *2015 Action Plan*[7] discussed the importance of northern Manitoba's culture and natural resources. Manitoba's north has already been affected by warmer winters, variable ice patterns and changing hunting and harvesting conditions. A significant number of northern communities are dependent upon winter roads for the shipment of most commodities, including fuel. Winter roads are ice-roads created over frozen lakes, swamp, bog and forest for the passage of semi-trailer and other trucks supplying remote communities while the roads remain frozen. Manitoba has already experienced several winters with unusually short winter road seasons. This has resulted in significantly increased costs of transportation of essential goods to some remote northern communities. As permafrost thaws, rail lines serving the north, including the Port of Churchill, will require more frequent and extensive repairs and capital enhancements. Reductions in ocean ice, however, may increase the shipping season for the Port of Churchill, giving it a significant advantage. In anticipation of warmer winter weather, Manitoba plans to

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Manitoba's Climate Change and Green Economy Action Plan (December 2015), at pp. 39-51, available at https://perma.cc/M8QX-NFUW (accessed May 2022). See generally Manitoba Agriculture, *Mitigation Activities in Agriculture*, available at https://perma.cc/42BQ-4NYU (accessed May 2022).

6

Manitoba Sustainable Development, A Made-in-Manitoba Climate and Green Plan (2017) at pp. 45-48 and 51-52, available at https://www.gov.mb.ca/asset_library/en/climatechange/climategreenplandiscussionpaper.pdf (accessed May 2022).

7

Manitoba Sustainable Development, A Made-in-Manitoba Climate and Green Plan (2017) at pp. 2-3, available at https://www.gov.mb.ca/asset_library/en/climatechange/climategreenplandiscussionpaper.pdf (accessed May 2022).

realign winter roads, improve river and stream crossings and is currently developing all-season roads on the east side of Lake Winnipeg.[8] Manitoba also announced funding for permafrost research through the Churchill Northern Development Initiative and funding for capital improvements to the Port of Churchill and the Hudson Bay rail line.[9] Initiatives have also been undertaken to attempt to enhance the ability of northern communities to produce food for local consumption as an alternative to transporting those foods from the south over increasingly unreliable winter roads.[10]

Agriculture is expected to be the industry which will be subject to the greatest impacts resulting from climate change. Warmer temperatures, drier summers and more severe weather events combined with a greater frequency of droughts are expected to create a series of effects on agricultural producers and the rural and farm environment generally.[11] Even in years between droughts, flows in glacier-fed waterways are expected to diminish. Manitoba has encouraged the adoption of sustainable farming practices and on-farm conservation projects to support climate change adaptation while reducing GHG emissions.[12]

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Manitoba Sustainable Development, A Made-in-Manitoba Climate and Green Plan (2017), available at https://www.gov.mb.ca/asset_library/en/climatechange/climategreenplandiscussionpaper.pdf (accessed May 2022). For a description of the East Side Transportation Initiative, see Manitoba Floodway and Eastside Road Authority, Project 4 - All-Season Road Connecting Berens River to Poplar River First Nation (November 2014), available at https://iaac-aeic.gc.ca/050/documents/p80094/100591E.pdf (accessed May 2022).

9

See Minister of Transport announces investments to support Canada's supply chain, improve rail safety and strengthen rail corridors, News Release (July 13, 2022), available at https://www.canada.ca/en/transport-canada/news/2022/07/minister-of-transport-announces-investments-to-support-canadas-supply-chain-improve-rail-safety-and-strengthen-rail-corridors.html (accessed July 2022).

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For more information see Manitoba, Indigenous Reconciliation and Northern Relations, Northern Healthy Foods Initiative, available at https://www.gov.mb.ca/inr/major-initiatives/nhfi/index.html (accessed July 2022).

11

See Manitoba, Growing Conditions Are Changing--Here's How Agriculture Can Respond, (October 2019), available at https://www.manitoba.ca/agriculture/environment/climate-change/pubs/growing-conditions-are-changing-heres-how-agriculture-can-respond.pdf (accessed July 2022).

12

See generally, Manitoba, “Agriculture Climate Friendly Farms”, in Manitoba Science, Technology, Energy and Mines, Climate and Green Initiatives Branch, Beyond Kyoto: Manitoba's Green Future--Next Steps: 2008 Action on Climate Change (2008). For a recent

In 2017, the Manitoba government entered into the Canadian Agricultural Partnership, a five-year, $3 billion investment by federal, provincial, and territorial governments. Environmental sustainability and climate change are among the Partnership's six areas of focus. The framework is designed to strengthen the agriculture, agri-food and agri-based products sector by helping the sector reduce greenhouse-gas emissions and adapt to climate change. The five-year framework came into effect April 1, 2018, immediately after the expiry of the previous program, Growing Forward 2.[13]

The later *Made-in-Manitoba Plan* has put forward for consideration various adaptation initiatives to support the Adaptation "keystone" under the plan. Adaptation considerations contemplated in the plan include:[14]

- improved climate knowledge (with recourse to Prairie Climate Centre, the creation of a sustainable agricultural research centre, bridging with and incorporating indigenous knowledge, addressing critical infrastructure and assessment of disaster risk);
- ensuring and developing Sustainable and Climate-Ready Communities (including resilience with respect to human health, community and city design);
- ensuring and developing opportunities for sustainable agriculture and farming practices.

The Made-in-Manitoba Climate and Green Fund (continued under *The 2018 Climate and Green Plan Act*) provides financial support for projects, studies and activities directed towards climate change adaptation measures.[15] For further discussion of this fund see this chapter at §8:20.

VI. Future Trends in Provincial Law and Policy

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initiative see Canada, Government of Canada supports Manitoba and Prairie farmers with over $66 million to adopt sustainable practices and technologies, News Release (March 17, 2022), available at https://www.canada.ca/en/agriculture-agri-food/news/2022/03/government-of-canada-supports-manitoba-and-prairie-farmers-with-over-66-millionto-adopt-sustainable-practices-and-technologies.html (accessed July 2022).

13

Canada, Canadian Agricultural Partnership, available at https://agriculture.canada.ca/en/about-our-department/key-departmental-initiatives/canadian-agricultural-partnership (accessed May 2022); See also Manitoba Agriculture, Canadian Agricultural Partnership, Ag-Action Manitoba Program, available at https://www.gov.mb.ca/agriculture/canadian-agricultural-partnership/ag-action-manitoba-program/ (accessed May 2022). For more information on the previous Growing Forward 2 program, see https://perma.cc/4NMV-FS6N (accessed May 2022).

14

Manitoba Sustainable Development, A Made-in-Manitoba Climate and Green Plan (2017), at pp. 26-28, available at https://gov.mb.ca/asset_library/en/climatechange/climategreenplandiscussionpaper.pdf (accessed May 2022).

15

The Climate and Green Plan Act, C.C.S.M., c. C134, s. 11(2)(b).

8:29. Introduction

Manitoba continues to work to reduce emissions and undertake policy and legislative action on climate change. In Manitoba, a fairly recent and significant policy change was the commitment to develop the *Made-in-Manitoba Plan* which is aimed at:

- Carbon pricing that fosters emissions reduction, keeps investment capital in Manitoba and stimulates new innovation in clean energy, businesses and jobs.
- Land-use and land and water conservation measures that sequester carbon and foster adaptation to climate change.
- Reducing emissions from commercial buildings through building codes and other measures putting government operations and infrastructure on a path to carbon-neutrality.
- Encouraging the adoption of fuel saving technologies and measures within the transportation sector.[1]

Manitoba took its first significant step in implementing its comprehensive and integrated vision when it passed *The 2018 Climate and Green Plan Act*, which legislatively mandates the development of a "climate and green plan", the mechanism to establish GHG emissions reductions targets along with the establishment of an Expert Advisory Council, a Low Carbon Government Office and a fund to provide support for various projects, studies and activities.[2]

One of the most significant aspects of this issue to Manitobans--and indeed to all Canadians--is the application of the Federal law, particularly in the area of emissions regulation and trading. The Government of Manitoba is of the view that the province stands to benefit significantly from a reduced carbon atmosphere and economy and has long been attempting to position itself to achieve maximum benefits for such reductions. These efforts have been largely focused around positioning the province in strategic linkages with other jurisdictions and promoting Manitoba as a source of green renewable energy supplied by current and future developments in hydroelectricity and, to a lesser extent, wind power.

As a vehicle of provincial climate and green development policy, Manitoba Hydro is one of the province's main economic engines. With billions of dollars of recently completed projects[3] and other projects at various stages of development,[4] much weight has been placed on

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See letter from Manitoba Premiere to the Minister of Sustainable Development (May 3, 2016), available at https://perma.cc/7K8Q-H54L (accessed May 2022).

2

The Climate and Green Plan Act, C.C.S.M., c. C134. For full discussion see this chapter at §§8:19 and 8:20.

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For example, both the Manitoba-Minnesota Transmission Project (in service June 1, 2020) and the Birtle Transmission Project (in service March 29, 2021) are to provide power for export. See Manitoba Hydro, Electricity Exports, available at https://www.hydro.mb.ca/corporate/electricity_exports/ (accessed July 2022).

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For example, Manitoba Hydro is currently building the Keeyask generating station (with

Manitoba's ability to export surplus clean power.[5] In addition to the reduction of greenhouse gases generally, the potential receipt of credit for associated GHG emissions displaced in other jurisdictions could be an additional benefit. The ability of Manitoba Hydro to capture credits is, of course, dependent upon the ability to recognize and then transfer the environmental attributes, associated with a particular power sale. In addition, with the completion of the 138 MW St. Joseph Wind Farm and the 16.5 MW expansion of the St. Léon Wind Farm to 120.45 MW in 2011, Manitoba now has over 258 MW of installed wind capacity.[6] Although Manitoba has previously pledged to establish 1000MW of wind power, no new projects have been announced to date. These projects are coupled with Manitoba Hydro's and Efficiency Manitoba's efforts to conserve domestic power consumption to permit increased power sales on the more lucrative export market.

As described, of particular significance for Manitoba going forward is the reduction of GHG emissions within the agriculture sector. In July 2022, federal, provincial, and territorial Ministers of Agriculture reached an agreement in principle for a new five-year Sustainable Canadian Agricultural Partnership which includes *inter alia* a targeted three to five Mt reduction in GHG emissions.[7] With respect to the new federal requirement for a 30% emissions reduction by 2030 through the agriculture sector's use of nutrients,[8] however, Manitoba's Agriculture Minister stated that a more targeted approach is required as the blanket requirement could

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partners Tataskweyak Cree Nation, War Lake First Nation, York Factory First Nation, and Fox Lake Cree Nation) for projected power use in Manitoba which in turn will allow excess electricity to be exported. This station will add 695-megawatts of renewable hydroelectric power and is expected to come online in 2022.

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In 2018, for example, approximately 18% of Manitoba's electricity was exported. For list of current electricity exports see Manitoba Hydro, Power Sale Arrangements, available at https://www.hydro.mb.ca/corporate/electricity_exports/power_sale_arrangements/ (accessed May 2022).

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Manitoba, Wind Energy, available at https://www.gov.mb.ca/sd/environment_and_biodiversity/energy/wind/index.html (accessed May 2022).

7

The Sustainable Canadian Agriculture Partnership is anticipated to take effect April 1, 2023, and replaces the current Canadian Agricultural Partnership. See Agriculture and Agri-Food Canada, "Annual Meeting of Federal, Provincial and Territorial Ministers of Agriculture", Backgrounder (July 7, 2022) available at https://www.canada.ca/en/agriculture-agri-food/news/2022/07/annual-meeting-of-federal-provincial-and-territorial-ministers-of-agriculture.html (accessed July 2022).

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For further discussion see §8:18 of this chapter.

impede domestic and global food security, reduce Manitoba's competitiveness and harm Manitoba producers.[9] A targeted approach would include, for example, consideration of the cost-benefit of specific changes to reduce emissions as well as beneficial management practices already in place in Manitoba such as the 4R approach to nutrients (i.e. right source, right rate, right place, right time).[10]

8:30. Regional and International Linkages

Manitoba is a party to a number of memorandums of understanding of cooperation as well as more formal climate change initiatives.

In December 2005, Manitoba co-hosted a Climate Leaders' Summit during the United Nations Climate Change Conference in Montreal. This resulted in a *Declaration of the Federated States and Regional Governments on Climate Change*,[1] pursuant to which the signatories committed to set achievable short- and long-term targets and objectives for overall emissions reductions through a variety of mechanisms. The signatories agreed to pursue the development, exchange and implementation of best practices and strategies as a part of a sustainable development approach. They further agreed to develop and share communications and educational strategies to increase public awareness of climate change issues and solutions. The declaration also included commitments to work in collaboration with other jurisdictions to commercialize more clean technologies, achieve greater emissions reductions and implement climate-friendly procurement policies. Further commitments were to develop, implement and share strategies to enhance adaptive capacity and to promote existing and new regional partnerships on climate change in order to facilitate any measures developed.

In 2006, Manitoba and California became parties to a Memorandum of Understanding between Manitoba and California.[2] The Memorandum of Understanding provides for support of Manitoba's efforts to adopt legislation setting out GHG emissions reduction obligations as well as to explore the opportunity for Manitoba to participate in carbon-credit trading via California's

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Manitoba, "Statement from Agriculture Minister Derek Johnson on Federal Greenhouse-Gas Emissions Reduction Targets", News Release (July 26, 2022), available at https://news.gov.mb.ca/news/index.html?item=55618 (accessed July 2022).

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Manitoba, "Statement from Agriculture Minister Derek Johnson on Federal Greenhouse-Gas Emissions Reduction Targets", News Release (July 26, 2022), available at https://news.gov.mb.ca/news/index.html?item=55618 (accessed July 2022).

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The Montreal Declaration of the Federated States and Regional Governments on Climate Change (December 6, 2005) was signed by 33 state and regional governments from across Canada, Europe, the United States, Africa, Australia and South America. Text available at https://perma.cc/2AGP-Z6YN (accessed May 2022).

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Manitoba-California Memorandum of Understanding (December 2006), available at https://perma.cc/5GES-YHK7 (accessed May 2022).

Clean Air Resources Board and the California Climate Action Registry. Manitoba and California also agreed to promote further trade partnerships in the areas of low- and no-emission vehicle technology, particularly hybrid and hydrogen buses manufactured in Manitoba and plug-in hybrid electric vehicles. Notwithstanding the differences in climate and geography, Manitoba and California agreed to exchange best practices in areas such as renewable energy technology, residential and commercial building efficiency, waste reduction and new transportation and agricultural initiatives with a view to reducing GHG emissions.

In 2006, Manitoba became a signatory to the Memorandum of Understanding between the Province of Manitoba and the Government of South Australia.[3] This Memorandum of Understanding provides for a general framework for cooperation in public administration and governance; industry, trade and tourism; education and training; energy, science and technology; environment and sustainability; and social inclusion.

In June 2007, Manitoba joined the Western Climate Initiative (also called the Western Regional Climate Initiative or "WCI"). The WCI was aimed at developing: a regional target for reducing GHG emissions; a multi-state registry to track and manage emissions; and a market-based solution in the form of a cap and trade program to reach the regional emissions target.[4] Additional WCI partners included Arizona, California, Manitoba, Montana, New Mexico, Ontario, Oregon, British Columbia, Quebec, Utah and Washington.[5] The WCI set a collective emissions reduction target in the region of 15% below 2005 levels by 2020.[6]

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[3] Manitoba-Australia Memorandum of Understanding (April 2006), available at https://perma.cc/FHV8-ZAPP (accessed May 2022).

[4] Manitoba, Federal-Provincial & International Relations, International Agreements- North America, Western Climate Regional Initiative Agreement, available at https://www.gov.mb.ca/asset_library/en/documents/fedprovrelations/northamerica/western_regional_climate_action_initiative_agreement.pdf (accessed May, 2022). Note that in November 2011, the WCI became the Western Climate Initiative, Inc. ("WCI, Inc.") which was established to provide administrative and technical solutions to support the implementation of state and provincial greenhouse gas emissions trading programs. WCI, Inc. Our Work, available at https://wci-inc.org/ (accessed May 2022).

[5] Manitoba, Federal-Provincial & International Relations, International Agreements- North America, Western Climate Regional Initiative Agreement, available at https://www.gov.mb.ca/asset_library/en/documents/fedprovrelations/northamerica/western_regional_climate_action_initiative_agreement.pdf (accessed May, 2022). See also Western Climate Initiative, History, available at http://westernclimateinitiative.org/ (accessed May 2022).

[6] International Carbon Action Partnership, Manitoba Announces ETS as Part of New Climate Change Plan (December 4, 2015), available at https://icapcarbonaction.com/en/news/manitoba-announces-ets-part-new-climate-change-plan (accessed May 2022).

In October 2007, Manitoba, Oregon, New Mexico, California and British Columbia (as members of the WCI) determined to work together on The International Carbon Action Partnership ("ICAP").[7] The ICAP is an international forum of governments and public authorities that have implemented or are planning to implement carbon markets.[8] The ICAP's objective is to contribute to the establishment of a "well-functioning global cap and trade carbon market" through the sharing of knowledge and experience.[9] ICAP currently has 33 full members (including Manitoba) and 7 observers.[10]

In October 2007, Manitoba also signed a Memorandum of Understanding with British Columbia to affirm the commitment of both provinces to reduce GHG emissions below 1990 levels. Specific measures set out in the Memorandum include:[11]

- development of green building codes achieving the highest levels of energy efficiency in Canada;
- broadening renewable energy portfolios with additional hydroelectric, wind power, geothermal, solar and biomass energy;
- designing a multi-sector market-based mechanism through the Western Climate Initiative; and
- promoting low-emitting vehicle technologies.

On November 15, 2007 at the Energy Security and Climate Change Summit (organized by the Midwestern Governors Association[12]), Manitoba signed two agreements to promote

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International Carbon Action Partnership, Political Declaration (October 29, 2007), available at https://www.manitoba.ca/asset_library/en/premier/icap_declaration_oct2007.pdf (accessed May 2022).

8

International Carbon Action Partnership, Manitoba Announces ETS as Part of New Climate Change Plan (December 4, 2015), available at https://icapcarbonaction.com/en/news/manitoba-announces-ets-part-new-climate-change-plan (accessed May 2022).

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International Carbon Action Partnership, FAQ, available at https://icapcarbonaction.com/en/faq (accessed May 2022).

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International Carbon Action Partnership, FAQ, available at https://icapcarbonaction.com/en/faq (accessed May 2022).

11

Manitoba and British Columbia, Memorandum of Understanding on Co-operation on Climate Action and Other Mutual Interests (October 23, 2007), available at https://perma.cc/NY8Q-Y4D2 (accessed May 2022).

12

The Midwestern Governors Association (MGA) is a non-profit, bipartisan organization aimed at fostering regional development and facilitating "the exchange of views and experiences on

renewable energy and address climate change: the Energy Security and Climate Stewardship Platform ("MGA Platform"); and the Midwestern Greenhouse Gas Reduction Accord ("MGA Accord").[13] The goal of the MGA Platform is to reduce emissions and increase energy efficiency while encouraging the development of energy resources and economic advantages and opportunities for Midwestern States.[14] The MGA Accord *inter alia* sought to establish regional targets for reducing GHG emissions and a regional market-based and multi-sector cap and trade mechanism to help achieve those targets.[15] Participants of the MGA Accord included members (Illinois, Iowa, Kansas, Manitoba, Michigan, Minnesota and Wisconsin) and observers (Indiana, Ohio, Ontario and South Dakota). The MGA Accord resulted in draft recommendations on a regional cap and trade standard, however, as of 2011 no further action was taken due to changes in the U.S. political landscape.

Notwithstanding the demise of the MGA Accord, Manitoba Hydro is currently a partner organization of the Midwestern Governors Association ("MGA") and participant in the MGA's stakeholder group on energy initiatives.[16] Manitoba Hydro's previous participation in the MGA was via two groups earlier convened by the MGA: the Energy Efficiency Advisory Group; and

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subjects of importance to the people of Midwestern states". Midwestern Governors Association, About Us, available at https://midwesterngovernors.org/about/ (accessed May 2022).

13

Manitoba, "Doer Signs Agreement with Midwestern U.S. States to Promote Clean Energy", News Release (November 15, 2007), available at https://news.gov.mb.ca/news/index.html?item=2621 (accessed May 2022).

14

Midwestern Governors Association, Energy Security and Climate Stewardship Platform for the Midwest (2007), at p. 4, available at https://www.gov.mb.ca/asset_library/en/documents/fedprovrelations/northamerica/mga_platform_agreement_2007.pdf (accessed May 2022).

15

Midwestern Greenhouse Gas Reduction Accord (2007), available at https://www.gov.mb.ca/asset_library/en/documents/fedprovrelations/northamerica/mga_grenhouse_gas_accord_november2007.pdf (accessed May 2022).

16

See Midwestern Governors Association, Gold Partners, available at https://midwesterngovernors.org/partners-program/ (accessed May 2022). See also Midwestern Governors Association, Energy, available at *https://midwesterngovernors.org/energy-2/* (accessed May 2022). See also Manitoba, Supporting Memorandum to the "Protocol Among the Members of the Midwest Governors' Association Regarding the Permitting and Sitting of Interstate Electric Transmission Lines in the Midwestern United States", (July 16, 2005), available at https://www.gov.mb.ca/asset_library/en/documents/fedprovrelations/northamerica/mou_mb_support_of_protocol_mwg_july_2005Revised.pdf (accessed May 2022).

the Renewable Electricity, Advanced Coal and Carbon Capture and Storage Group. Drawing on the goals, objectives and strategies of the MGA Platform, the Energy Efficiency Advisory Group was formed to develop analysis and modeling and to generate policy options while the Renewable Electricity, Advanced Coal and Carbon Capture and Storage Group looked to the development of a regional regulatory framework for carbon capture and storage that would provide clear direction regarding carbon dioxide capture, injection, monitoring, verification, compliance and liability for stored CO2.[17]

Manitoba Hydro's continued participation in the energy work of the MGA is presently described by the MGA as support of "current efforts in Grid Security and Modernization and electric transmission" as well as "previous efforts" in *inter alia* energy efficiency and carbon capture and storage.[18]

In October 2009, Manitoba entered into a Memorandum of Understanding (MOU) with Wisconsin. Relevant cooperation under the MOU includes enhancing skills, technology transfer and research partnerships in common key sectors such as renewable energy and environmental industries, agricultural development and transportation.[19]

In December 2009, Manitoba participated in the United Nations Climate Change Conference in Copenhagen. During the conference, Manitoba and South Australia entered into a Memorandum of Understanding to share expertise on climate change adaptation and water resources management including addressing flood hazard reductions, long-term drought strategies and capacity building towards resilience to future climate change challenges. Similarly, Manitoba and Wisconsin agreed to take the first steps under their cooperation agreement by organizing a series of workshops involving experts from within the Midwest region.[20] Additionally, on December 15, 2009, at the Copenhagen Climate Leaders' Summit,

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See Midwestern Governors Association, Energy Security and Climate Stewardship Platform for the Midwest (2007), at p. 4, available at https://www.gov.mb.ca/asset_library/en/documents/fedprovrelations/northamerica/mga_platform_agreement_2007.pdf (accessed May 2022).

18

Midwestern Governors Association, Energy, available at https://midwesterngovernors.org/energy-2/ (accessed May 2022).

19

Memorandum of Understanding for Collaboration Innovation, Emerging Technology and Enhancement of the Midcontinent Knowledge / "IQ" Corridor (October 15, 2009). For copy of the agreement see Manitoba, Federal-Provincial & International Relations, International Agreements- North America, Western Climate Regional Initiative Agreement, available at https://www.gov.mb.ca/asset_library/en/documents/fedprovrelations/northamerica/western_regional_climate_action_initiative_agreement.pdf (accessed May, 2022).

20

See Manitoba, "Wisconsin Partner on Climate Change: Selinger, Doyle", News Release, available at https://news.gov.mb.ca/news/index.html?item=7329 (accessed May 2022).

2009, Manitoba's Premier committed the Manitoba government to move forward with developing legislation to enable the creation of a cap-and-trade system in Manitoba.[21] The anticipated legislation was intended to complement the WCI and the MGA Accord.[22] Online public consultations for a legislated cap-and-trade system were completed March 15, 2011. A final report became available but no legislation was developed.[23]

Manitoba participated in the 2012 United Nations Conference on Sustainable Development (Rio+20). One of the major outcomes of this meeting was a commitment by The Climate Group's States and Regions alliance, of which Manitoba was a member,[24] to partner with the Carbon Disclosure Project on the design and development of a climate change reporting program for state and regional governments.[25]

In 2014, Manitoba attended the Canadian Energy Innovation Summit ("CEIS"), which brought together key players from the energy sector to explore the future of energy innovation in Canada and opportunities for environmentally responsible economic development.[26] During the

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See Manitoba, "Premier Commits Manitoba To Move Toward Cap-And-Trade Legislation", News Release, available at https://news.gov.mb.ca/news/index.html?item=7325 (accessed May 2022).

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See Manitoba, "Public Consultation on a Proposed Cap and Trade System for Manitoba", News Release, available at https://www.gov.mb.ca/sd/climate/pdf/1453_cap_and_trade.pdf (accessed May 2022).

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See Manitoba Conservation, Public Consultation on a Proposed Cap and Trade System for Manitoba, What We Heard (June 2011), available at https://www.gov.mb.ca/sd/climate/pdf/cap_and_trade_consultation_final_rpt.pdf (accessed May 2022).

24

The Climate Group States and Regions Alliance (see also "Compact of States and Regions") is now the "Under2 Coalition". At the time of writing, Manitoba was not listed as a specific signatory to the Under2 Memorandum of Understanding. For more information see The Climate Group, Under2 Coalition, available at https://www.theclimategroup.org/under2-coalition (accessed May 2022).

25

See discussion in Manitoba, Manitoba's Report on Climate Change for 2012, Department of Conservation and Water Stewardship (February 2014) at p.14, available at https://www.manitoba.ca/sd/climate/pdf/2012_climate_change_web.pdf (accessed May 2022). For further detail on this carbon reporting program, see Carbon Disclosure Project, Climate Change, at https://www.cdp.net/en/climate (accessed May 2022).

26

For a discussion of the Canadian Energy Innovation Summit, see MaRS and Government of

CEIS, the Province of Manitoba signed a Memorandum of Understanding with the Province of Ontario to collaborate on regional energy innovation, particularly with regard to the transition to renewable energy.[27] This collaboration builds upon Manitoba and Ontario's existing partnership in maintaining operation of the Experimental Lakes Area as well as the preservation of the boreal forest east of Lake Winnipeg.

During 2015, Manitoba's cooperative efforts have included:

• participating in the Prairies Regional Adaptation Collaborative and Natural Resource's Canada Adaptation Program;[28]

• signing the "Declaration of Premiers of Canada" at the Quebec Summit on Climate Change which recognizes the need for action and transition to a lower-carbon economy;[29]

• signing the Climate Action Statement at the Climate Summit of the Americas which includes commitments to carbon pricing; public reporting; taking action in key sectors; and meeting existing GHG reduction agreements;[30]

• participating in the 2015 UN Climate Change Conference in Paris where Manitoba also signed a *Memorandum of Understanding on Co-operation in the Area of Climate Change among Ontario, Quebec and Manitoba "to* collaborate on concerted climate change actions and market based mechanisms";[31] and

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Ontario, Canadian Energy Innovation Summit, Summary Report (2014), available at https://www.marsdd.com/wp-content/uploads/2014/05/SUMMARY-aec-summit-EN-screen.pdf (accessed May 2022).

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MaRS and Government of Ontario, Canadian Energy Innovation Summit, Summary Report (2014), at p.7, available at https://www.marsdd.com/wp-content/uploads/2014/05/SUMMARY-aec-summit-EN-screen.pdf (accessed May 2022). See also Ontario, "Ontario and Manitoba Partner on Energy Innovation", News Release (February 28, 2014), available at https://perma.cc/F6QZ-9YUT (accessed May 2022).

28

The Prairies Regional Adaptation Collaborative was a cost-shared initiative of Natural Resources Canada and the governments of Manitoba, Saskatchewan and Alberta. For additional information see Prairies Regional Adaptation Collaborative, available at https://www.prairiesrac.com/partners/ (accessed May 2022).

29

Declaration of the Premiers of Canada, (April 14, 2015), available at https://www.environnement.gouv.qc.ca/changementsclimatiques/sommet2015/pdf/Declaration-SommetCC-ANG.pdf (accessed May 2022).

30

Climate Action Statement - Climate Summit of the Americas (July 9, 2015), available at https://news.ontario.ca/en/backgrounder/33552/climate-action-statement-climate-summit-of-the-americas (accessed May 2022).

31

• signing a Saskatchewan-Manitoba Memorandum of Understanding Respecting Water Management to share information and coordinate approaches to flooding and drought, water quality, and aquatic ecosystems.[32]

In February 2018, Manitoba joined the "Pan-Canadian Framework on Clean Growth and Climate Change". The framework was "developed with the provinces and territories and in consultation with Indigenous peoples" with the goal of a pan-Canadian cooperative approach to addressing carbon pricing, other climate change measures and clean economic growth.[33]

In 2021, with the completion of the work by the Prairies Regional Adaptation Collaborative (PRAC), Manitoba continued in its collaborative work on adaptation through participation in ClimateWest, a central hub for climate services in Manitoba, Saskatchewan and Alberta.[34] Furthermore, in July 2022, Manitoba entered into a new five-year agreement on Sustainable Canadian Agricultural Partnership, an agreement between the federal, provincial, and territorial governments. In addition to new measures to improve business risk management and adaptation in the agricultural sector, the Agreement includes, amongst other things, commitment to a 3-5 Mt reduction in GHG emissions.[35]

Memorandum of Understanding between the Government of Québec, the Government of Manitoba and the Government of Ontario Concerning Concerted Climate Change Actions and Market-Based Mechanisms (2015), available at https://www.gov.mb.ca/sd/climate/pdf/mou_quebec_manitoba_ontario.pdf (accessed May 2022).

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Saskatchewan-Manitoba Memorandum of Understanding Respecting Water Management, p.3, available at https://www.gov.mb.ca/sd/pubs/water-stewardship-biodiversity/saskatchewan-mb-mou.pdf (accessed May 2022). The MOU was in effect for five years and subsequently renewed in 2022 until 2026. See Manitoba, "Manitoba and Saskatchewan Renew Memorandum of Understanding on Water Management" News Release (November 24, 2021), available at https://news.gov.mb.ca/news/index.html?item=52763 (accessed May 2022).

33

Canada, Pan-Canadian Framework on Clean Growth and Climate Change, available at https://www.canada.ca/en/services/environment/weather/climatechange/pan-canadian-framework.html (accessed May 2022).For further discussion of Manitoba signing on to the Pan-Canadian Framework on Clean Growth and Climate Change, see §8:3 and §8:18 of this chapter.

34

See ClimateWest, About, available at https://climatewest.ca/about/ (Accessed May 2022). For further discussion see §8:28 of this chapter.

35

The Sustainable Canadian Agriculture Partnership anticipated to take effect April 1, 2023, replaces the current Canadian Agricultural Partnership. See Agriculture and Agri-Food Canada, "Annual Meeting of Federal, Provincial and Territorial Ministers of Agriculture", Backgrounder (July 7, 2022) available at https://www.canada.ca/en/agriculture-agri-

VII. Conclusion

8:31. Concluding Remarks

Despite significant efforts and initiatives taken to address climate change over the past decade, Manitoba has not achieved any significant reductions in GHG emissions. Beginning in 2017, however, Manitoba has made noteworthy strides in revitalizing and integrating its efforts to address climate change. With the introduction of its *Made-in-Manitoba Plan* and *The 2018 Climate and Green Plan Act*, Manitoba announced its strategy to "lead and innovate" in sustainable development by organizing against the four "pillars" of climate, jobs, water and nature, pursuant to which it has identified 16 "keystones" for priority action. In addition to creating a more comprehensive and integrated framework, Manitoba re-organized its Department of Sustainable Development (now "Environment, Climate and Parks"), creating the Climate and Green Plan Implementation Office ("CGPIO") to improve coordination and communications and to eliminate a "silo" approach to the province's climate and green initiatives. The CGPIO in turn reports to the Expert Advisory Council established under *The 2018 Climate and Green Plan Act* to provide advice and recommendations to the Minister.

Manitoba's most significant emissions continue to stem from agriculture and transportation sectors. In this regard, Manitoba is introducing new initiatives to support mitigation strategies including funding opportunities, biofuels and biomass strategies, and the introduction of innovative legislation such as *The Watershed Districts Act*.

Perhaps the greatest opportunity for emissions reductions generally continues to lie with Manitoba Hydro, the Crown-owned utility, and its tremendous potential for the development of additional sources of renewable energy for export and the displacement of fossil fuel generated power that may result.

In some respects, Manitoba is fortunate in that its carbon footprint is smaller than might be expected due to the availability of non-emitting hydroelectric generators. On the other hand, in order to reduce emissions it must continue to innovate in the agriculture and transportation sectors. It remains to be seen how Manitoba will achieve significant emissions reductions in these sectors, and particularly the agricultural sector, given the new federal blanket requirement to achieve a 30% reduction in GHG emissions through the sector's use of nutrients by 2030 in contrast to the province's view that not only is nutrient use already being properly managed, any reduction in nutrients would lead to lower yields and in turn compromise Manitoba producers and consumers as well as jobs and food security. Furthermore, the effects of Manitoba's climate and its population distribution should also not be overlooked--cold winters, warm summers and long distances to travel typically require higher per capita energy consumption.

Overall, the Government of Manitoba sees the province as being well positioned to capitalize on opportunities associated with climate change initiatives and is advancing its vision to be the "cleanest, greenest and most climate resilient province" in Canada.

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food/news/2022/07/annual-meeting-of-federal-provincial-and-territorial-ministers-of-agriculture.html (accessed July 2022). For further discussion see §8:29 of this chapter.